

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--



— BUREAU OF —
RECLAMATION

Arkansas Valley Conduit (AVC) – Crowley Reach 1

Fryingpan-Arkansas Project, Colorado

Missouri Basin Region

Solicitation No. 140R6026R0001

**UNITED STATES DEPARTMENT OF THE INTERIOR
BUREAU OF RECLAMATION
MISSOURI BASIN REGION
BILLINGS, MONTANA**

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	---

Preface

This section is a synopsis of the items identified by Reclamation that have been problematic for some contractors. The items have been identified through previous real-world performance of construction with Reclamation. The following items are not all encompassing of problems that may or may not be encountered and are only meant to identify general challenges contractors may run into when contracting with Reclamation for construction work. The purpose of this document is to allow contractors to price construction more accurately at contract inception and reduce contract interpretation disagreements after contract award. It is highly recommended the Contractor read and become intimately familiar with both the solicitation and contract specifications and drawings prior to construction, as that can also head off potential disagreements as the work is being completed.

NOTE: The examples given below are for reference purposes only. Reclamation does not take responsibility for the application of calculations during proposal creation. The Contractor is required to apply all calculations internally, and the items in this document are for awareness purposes only.

Estimated Magnitude of Construction:

The estimated magnitude of construction is between \$40,000,000 and \$65,000,000.

NAICS Code and Size Standard

The applicable NAICS code for this solicitation is 237110 with a small business size standard of \$45,000,000. Offerors must have an active SAM.gov registration under this NAICS at the time of proposal submission.

Quality Control & Quality Assurance:

FAR Clause 52.246-12 requires the Contractor to establish a construction inspection system to ensure quality. Accordingly, per section 01 46 00 – Quality Procedures, a Quality Control Plan is required to clearly outline the Contractors Quality Control (QC) Program to cover all construction operations, both onsite and offsite, including work by subcontractors, fabricators, suppliers, and purchasing agents. The program must include a qualified, experienced Quality Control Supervisor (see part 1.05 Qualifications of the above specification section), who has authority delegated from an authorized official of the firm, to develop and manage quality control processes for all aspects of work specified and who has authorization to stop work if necessary. A well-managed Contractor's QC Program is essential to ensuring the work conforms to contract requirements. The effectiveness of the Contractor's QC Program will be subject to continued review and approval by the Government's Contracting Officer (CO).

The contractor will conduct its own Quality Assurance (QA) program, and Reclamation will only intermittently conduct its own Quality Assurance for specification compliance only, which may include inspection and tests performed by Government staff to ensure compliance with terms of the contract. Test performed by Reclamation will be used to ensure compliance with contract requirements and are not to be a replacement for specified Contractor quality contract and quality assurance testing. In the event of a discrepancy between Contractor's and Government's test results if performed, Reclamation's quality assurance test results will be compared to the contractor's results and a determination must be made whether the item conforms to the specifications or needs to be repaired/replaced at no additional cost to the government.

Quantity Surveys:

FAR Clause 52.236-16 Alt I Quantity Surveys will be included in this contract. Many contractor personnel have had issues providing adequate survey data IAW the referenced clause. This requires both preliminary and final surveys to be performed by the contractor. The contract requires (specs and clause) that a surveying plan be submitted (Surveying Plan) IAW specification 01 33 00. The surveying plan must be approved by Reclamation prior to the beginning of surveying work. The contract also requires submittal of all quantity survey notes and computations, as well as workday's survey notes. This is important as the quantity for payment must be verified against the actual survey data. Quantity surveys and calculations, along with as-built drawings, are required to be submitted with each monthly construction progress payment for a contractor's invoice to be considered as proper. Once construction is complete and all submittals are finalized, the balance of the lump sum price will be paid in the final invoice, quantity surveys are used to ensure the government does not unintentionally advance pay during progress payments.

The Government will have survey crews on site as part of its internal construction oversight and inspection program.

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	---

However, this is not to be relied on by the Contractor as meeting the survey specifications. The Contractor is expected to provide fulltime survey support under the direction of a registered professional land surveyor licensed in the state where the work is being completed IAW the survey specifications (section 01 71 20 – Surveying). Historically, many contractors have missed this requirement, and it has led to payment disagreements.

Submittals:

The submittals required for Reclamation projects can be very detailed. Reclamation is a very data-centric organization of engineering-minded personnel. As such, the data needs to be correct and submittals shall be thought out, in a logical format, and be thorough. A ‘shotgun-spread’ approach will not work. Meaning, if a contractor submits superfluous information and/or with no format or shown understanding of the items, it will likely lead to rejection and a required resubmittal of the items. The same is true if a contractor only submits a portion of the items required under a requirement submittal number (RSN). The Contractor is responsible for providing quality control of contractor and subcontractor submittals to ensure they contain all, but no more than, the items required by a particular RSN. Reclamation will retain many, if not all, of the records in library retention for many years. This is for awareness purposes only.

Project Record Documents (i.e. As-Built Drawings):

Section 01 78 30 of the specifications covers this in detail. Reclamation expects full compliance with keeping drawings on site as required in the specifications and final electronic as-builts in .dwg format. See specifications for further information.

Cultural Resources Compliance and Archaeological Monitoring:

Given the density of archaeological sites and artifacts in this area of the country, some items of archaeological and cultural importance may be encountered during construction, including previously unknown sites and artifacts called discoveries. The delays for any ROW restrictions needed to protect those resources shown in the bid documents shall be included in the initial bid. The contract may be modified for time and/or cost if cultural resources discoveries are encountered, and the Contractor does not have other areas where work can be shifted. Be sure to read the specifications sections. See specifications section 01 57 60 and 01 57 90 for further details. It can be expected that the construction monitors of an Archaeological or Monitoring Firm may contact the Reclamation personnel and have the CO direct a temporary stop work until the discovery is mitigated or otherwise addressed and resolved.

Project Specific Areas of Concern:

The project crosses an area within the Town of Boone with potentially contaminated materials. See specification sections 01 57 20, 51 02 60 and 51 02 61 for preliminary findings, required testing, and required CDPHE submittals. See specification sections 31 23 22 and 33 11 10 and drawings for the special encasement required to protect the pipe in this area.

Another project specific area of concern is the limited footprint available near the western limits of the Horizontal Directional Drilled (HDD) installation. This falls within the Town of Boone. Also see specification sections 01 55 00 and 01 55 20 for requirements for maintaining access for residents and the general public.

Permitting for the railroad crossings has not been finalized at the time of this solicitation; therefore, this work is included as a separate executable option. Refer to the drawings and Specification Section 01 11 00 for the scope and definition of Option A (identified as Optional Price Schedule B in Section B). Attachment 4, “DRAFT UPRR Exhibit C – Insurance Requirements,” includes a draft copy of the Union Pacific Railroad pipeline permit and the associated insurance requirements. These insurance requirements will only be applicable upon exercise of the option and are in addition to those outlined in clause 1452.228-70, LIABILITY INSURANCE – DEPARTMENT OF THE INTERIOR (JULY 1996).

Taxes:

In accordance with FAR 52.229-3, the contract price offered by contractors includes all applicable Federal, State, and local taxes. The Contractor must rely on its internal tax experts to ensure full compliance with tax laws.

Site Visit:

Please see section L SITE CONDITIONS AND PRESENTATION (CONSTRUCTION) for information regarding site conditions/visit.

Subcontractors:

Subcontractors cannot submit partial bids straight to the Government. Subcontractors shall bid directly to prime contractors. Items will not be pre-qualified during the synopsis or solicitation period. It is the prime contractor’s responsibility to confirm

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	---

an item meets the specifications of this requirement.

52.222-11 SUBCONTRACTS (LABOR STANDARDS) MAY 2014:

Please carefully read this clause and ensure SF1413's are emailed to the COR and Contract Specialist, with a cc to the Contracting Officer.

QUESTIONS and ANSWERS

All questions related to this project must be submitted electronically to david_bryan@ios.doi.gov and monica_burgio@ios.doi.gov and must reference Solicitation No. 140R6026R0001. Questions must be received no later than 1400 hours (2:00 PM) MDT on April 27, 2026, to allow Reclamation sufficient time to prepare and issue responses to all Offerors before the proposal due date. Only written questions will receive a response.

Each submitted question must include the following information: the document name, document date, and the specific page, paragraph, clause, or other precise citation for which clarification is requested.

All questions, along with their corresponding answers and any new or revised documents, will be issued through an amendment to the solicitation.

SYSTEM NOTICE - REPRESENTATIONS IN SAM.GOV (DOI-AAAP-0209 / CAAC Letter 2025-01, Supplement 1)

System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Examples include FAR 52.222-25, Affirmative Action Compliance, and paragraph (d) of FAR 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

SYSTEM NOTICE - REPRESENTATIONS IN SAM.GOV (DOI-AAAP-0210 / CAAC Letter 2025-02, Supplement 1)

System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations, including FAR 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals—Representation, and paragraph (t) of FAR 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Agencies will not consider or use these representations. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

SOLICITATION, OFFER, AND AWARD <i>(Construction, Alteration, or Repair)</i>	1. SOLICITATION NO. 140R6026R0001	2. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	3. DATE ISSUED 04/06/2026	PAGE 1	OF 66	PAGES
	IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.					

4. CONTRACT NO.	5. REQUISITION/PURCHASE REQUEST NO. 0044032816	6. PROJECT NO.
-----------------	---	----------------

7. ISSUED BY Bureau of Reclamation Missouri Basin Regional Office 2021 4th Avenue North Billings MT 59101	CODE R60	8. ADDRESS OFFER TO
---	-------------	---------------------

9. FOR INFORMATION CALL	a. NAME Monica Burgio	b. TELEPHONE NO. (Include area code) (NO COLLECT CALLS) 8015243780
-------------------------	--------------------------	---

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS (Title, identifying number, date)
THE SOLICITATION AS A WHOLE.

11. The contractor shall begin performance within <u>10</u> calendar days and complete it within <u>781</u> calendar days after receiving ☐ award, ☒ notice to proceed. This performance period is ☒ mandatory ☐ negotiable. (See _____).

12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? (If "YES", indicate within how many calendar days after award in Item 12b.) ☒ YES ☐ NO	12b. CALENDAR DAYS 10
--	--------------------------

13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and 1 copies to perform the work required are due at the place specified in Item 8 by 1400 (hour) local time 05/18/2026 (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee ☒ is, ☐ is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than 90 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

OFFER (Must be fully completed by offeror)

14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code)	15. TELEPHONE NO. (Include area code)
CODE	16. REMITTANCE ADDRESS (Include only if different than Item 14.)
FACILITY CODE	

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)

AMOUNTS 

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NUMBER										
DATE.										

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	20b. SIGNATURE	20c. OFFER DATE
--	----------------	-----------------

AWARD (To be completed by Government)

21. ITEMS ACCEPTED:

Continued...

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA
24. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified) 	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES CODE AT ☐ 10 U.S.C. 3204(a) () ☐ 41 U.S.C. 3304(a) ()
26. ADMINISTERED BY Bureau of Reclamation Missouri Basin Regional Office 2021 4th Avenue North Billings MT 59101	27. PAYMENT WILL BE MADE BY

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return <u> 1 </u> copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.	☐ 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.
30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN (Type or print)	31a. NAME OF CONTRACTING OFFICER (Type or print) David Bryan
30b. SIGNATURE	31b. UNITED STATES OF AMERICA BY
30c. DATE	31c. DATE

CONTINUATION SHEET	REFERENCE NO. OF DOCUMENT BEING CONTINUED	PAGES
	140R6026R0001	PAGE 3 OF 66

NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
00010	Delivery Location Code: 0011285678 Bureau of Reclamation-GP-ECA0 Eastern Colorado Area Office 11056 W. CR 18E Loveland CO 80537 US				
	AVC Crowley Reach 1 Please See Continuation of Section B - Construction Price Schedule (CLINS A-1 through A-41, C-1, and D-1) Product/Service Code: Y1NE Product/Service Description: CONSTRUCTION OF WATER SUPPLY FACILITIES Period of Performance: 09/01/2026 to 10/31/2028				
00020	AVC Crowley Reach 1 Option A (Specification Section 01 11 00) Please See Continuation of Section B - Construction Price Schedule (CLINS B-1 through B-20) Product/Service Code: Y1NE Product/Service Description: CONSTRUCTION OF WATER SUPPLY FACILITIES Period of Performance: 09/01/2026 to 10/31/2028				

SECTION B – Arkansas Valley Conduit – Crowley Reach 1

CONTINUATION OF SECTION B – SUPPLIES OR SERVICES AND PRICES

B.1 PRICE SCHEDULES

- (a) Offers will be considered for award on the following Price Schedules, but no offer will be considered for award on only a part of the Price Schedules.
- (1) Offerors shall complete Price Schedules A, B, C, and D. Offers for less than the total of Price Schedules A, B, C, and D will be considered nonresponsive and will not be evaluated for award.
- (2) Offers will be evaluated based on the total of Price Schedules A, B, C, and D.
- (b) Offers are subject to the terms and conditions of this solicitation.
- (c) Quantities in Price Schedule are estimated quantities for comparison of offers only. Except as provided in contract clause at H.2, Variation in Estimated Quantity, no claim shall be made against Government for overruns or underruns. Contract clause at H.2 Variation in Estimated Quantity does not apply to lump sum items.
- (d) See the contract clause at WBR 1452.232-81, Payment for Mobilization and Preparatory Work, for CLIN 1.
- (e) Price Schedule C will be paid after all work in Price Schedule A (and if exercised, Price Schedule B) is complete.
- (f) Definitions:
- (1) CLIN – Contract Line Item Number

PRICE SCHEDULE A

CLIN	Section	Supplies or Services	Quantity and Unit	Unit Price	Amount
A-1	WBR 1452.232-81	Mobilization and Preparatory Work	For the lump sum of		\$
A-2	01 33 00	Submittals Requiring Colorado Department of Public Health and Environment (CDPHE) Review	For the lump sum of		\$

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

CLIN	Section	Supplies or Services	Quantity and Unit	Unit Price	Amount
A-3	01 51 15	Utility Relocation – Lumen Technologies – Non-Pass-Through ³	For the lump sum of		\$
A-4	01 51 15	Utility Relocation – Xcel Energy – Non-Pass-Through ³	For the lump sum of		\$
A-5	01 52 10	Field Office and Laboratory	For the lump sum of		\$
A-6	01 55 20	Traffic Control Management	For the lump sum of		\$
A-7	01 57 15	Utility Crossing Investigations – Price Schedule A	For the lump sum of		\$
A-8	03 15 19	Hydrophilic Strip Waterstop	For the lump sum of		\$
A-9	03 15 22	Modular Seals	For the lump sum of		\$
A-10	03 30 00	Concrete Pavement	68 yd ²	\$	\$
A-11	26 42 11	Buried Galvanic Cathodic Protection and Corrosion Monitoring System – Price Schedule A	For the lump sum of		\$
A-12	27 05 43	Fiber Communications Infrastructure – Price Schedule A	For the lump sum of		\$
A-13	31 02 10	Water for Dust Abatement – Price Schedule A	2,351 Mgal	\$	\$
A-14	31 02 30	Dust Palliative – Price Schedule A	23.53 Mgal	\$	\$
A-15	31 03 33	System Design	For the lump sum of		\$
A-16	31 03 33	Dewatering Materials – Price Schedule A	25,650 lin ft	\$	\$
A-17	31 03 33	Dewatering System Installation and Removal – Price Schedule A	25,650 lin ft	\$	\$
A-18	31 03 33	Dewatering Operation – Price Schedule A	25,650 lin ft	\$	\$
A-19	31 03 33	Observation Wells Materials, Installation, and Removal – Price Schedule A	25,650 lin ft	\$	\$
A-20	31 03 33	Unwatering System Materials, Installation, Operation, and Removal	For the lump sum of		\$
A-21	31 11 00	Clearing and Grubbing – Price Schedule A	25.71 acre	\$	\$
A-22	31 14 10	Stripping, Stockpiling, and Placement – Price Schedule A	123,650 yd ²	\$	\$
A-23	31 23 22	Imported Backfill Material	31,000 yd ³	\$	\$
A-24	31 23 22	Rock Excavation	5,300 yd ³	\$	\$

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

CLIN	Section	Supplies or Services	Quantity and Unit	Unit Price	Amount
A-25	32 12 22	Asphalt Concrete Pavement – Price Schedule A	177 yd ²	\$	\$
A-26	32 15 10	Gravel Surfacing	2,400 yd ²	\$	\$
A-27	32 17 20	Painted Traffic Lines and Markings	160 lin ft	\$	\$
A-28	32 92 20	Seeding and Soil Supplements – Price Schedule A	123,650 yd ²	\$	\$
A-29	33 05 22	Horizontal Directional Drilling – Line Pipe	For the lump sum of		\$
A-30	33 05 22	Horizontal Directional Drilling – Fiber Optic Line	For the lump sum of		\$
A-31	33 11 10*	PVC Line Pipe Delivered to Site – Price Schedule A	25,035 lin ft	\$	\$
A-32	33 11 10*	HDPE Line Pipe Delivered to Site – Price Schedule A	25,035 lin ft	\$	\$
A-33	33 11 10	Line Pipe Installed (CLSM) – Price Schedule A	7,900 lin ft	\$	\$
A-34	33 11 10	Line Pipe Installed (Select Material)	6,200 lin ft	\$	\$
A-35	33 11 10	Line Pipe Installed (Special Encasement)	935 lin ft	\$	\$
A-36	33 11 10	Filling and Testing Pipe	For the lump sum of		\$
A-37	33 22 15	Air Valve Assemblies – Price Schedule A	8 ea	\$	\$
A-38	33 22 15	Blowoff Assemblies	7 ea	\$	\$
A-39	33 22 15	Sampling Station Assemblies	2 ea	\$	\$
A-40	33 22 15	Sectionalizing Valve Assemblies	3 ea	\$	\$
A-41	33 82 23	Optical Fiber Cable – Price Schedule A	28,800 lin ft	\$	\$
Subtotal of CLINs A-1 through A-41					\$

Notes: *Include price for delivering and installing either PVC or HDPE but not both.

1. Mgal = thousand gallons.

2. Refer to Price Schedule D for CLINs related to permitting and utilities. Include costs not listed in Price Schedule D in Price Schedule A CLINs.

³ Price offered for CLINs A-3 and A-4 shall not include pass-through costs. Refer to Price Schedule D.

TOTAL FOR PRICE SCHEDULE A \$ _____

SolicitationDocument No.
140R6026R0001Document Title
Arkansas Valley Conduit (AVC) – Crowley Reach 1**OPTIONAL PRICE SCHEDULE B**

CLIN	Section	Supplies or Services	Quantity and Unit	Unit Price	Amount
B-1	01 57 15	Utility Crossing Investigations – Optional Price Schedule B	For the lump sum of		\$
B-2	26 42 11	Buried Galvanic Cathodic Protection and Corrosion Monitoring System – Optional Price Schedule B	For the lump sum of		\$
B-3	27 05 43	Fiber Communications Infrastructure – Optional Price Schedule B	For the lump sum of		\$
B-4	31 02 10	Water for Dust Abatement – Optional Price Schedule B	49 Mgal	\$	\$
B-5	31 02 30	Dust Palliative – Optional Price Schedule B	0.47 Mgal	\$	\$
B-6	31 03 33	Dewatering Materials – Optional Price Schedule B	750 lin ft	\$	\$
B-7	31 03 33	Dewatering System Installation and Removal – Optional Price Schedule B	750 lin ft	\$	\$
B-8	31 03 33	Dewatering Operation – Optional Price Schedule B	750 lin ft	\$	\$
B-9	31 03 33	Observation Wells Materials, Installation, and Removal – Optional Price Schedule B	750 lin ft	\$	\$
B-10	31 11 00	Clearing and Grubbing – Optional Price Schedule B	0.29 acre	\$	\$
B-11	31 14 10	Stripping, Stockpiling, and Placement – Optional Price Schedule B	1,350 yd ²	\$	\$
B-12	32 12 22	Asphalt Concrete Pavement – Optional Price Schedule B	73 yd ²	\$	\$
B-13	32 92 20	Seeding and Soil Supplements – Optional Price Schedule B	1,350 yd ²	\$	\$
B-14	33 05 21	Bored Crossing at Railroad – Line Pipe	For the lump sum of		\$
B-15	33 05 21	Bored Crossing at Railroad – Fiber Optic Line	For the lump sum of		\$
B-16	33 11 10*	PVC Line Pipe Delivered to Site – Optional Price Schedule B	519 lin ft	\$	\$
B-17	33 11 10*	HDPE Line Pipe Delivered to Site – Optional Price Schedule B	519 lin ft	\$	\$

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

CLIN	Section	Supplies or Services	Quantity and Unit	Unit Price	Amount
B-18	33 11 10	Line Pipe Installed (CLSM) – Optional Price Schedule B	519 lin ft	\$	\$
B-19	33 22 15	Air Valve Assemblies – Optional Price Schedule B	1 ea	\$	\$
B-20	33 82 23	Optical Fiber Cable – Optional Price Schedule B	700 lin ft	\$	\$
Subtotal of CLINs B-1 through B-20					\$

Notes: *Include price for delivering and installing either PVC or HDPE but not both.

1. Mgal = thousand gallons.

2. Refer to Price Schedule D for CLINs related to permitting and utilities. Include applicable costs not listed in Price Schedule D in Optional Price Schedule B CLINs.

TOTAL FOR OPTIONAL PRICE SCHEDULE B \$ _____

PRICE SCHEDULE C

CLIN	Supplies or Services	Quantity and Unit	Unit Price	Amount
C-1	Technical Data	For the lump sum of		\$

Note: 1. Technical Data includes approved submittals of as-built drawings, Final Data, Final Drawings, Final Reports, and Operation and Maintenance Manuals.

TOTAL FOR PRICE SCHEDULE C \$ _____

PRICE SCHEDULE D

CLIN	Section	Supplies or Services	Quantity and Unit	Estimated Unit Price	Estimated Amount
D-1	01 41 26	Pass-Through Costs for Permits Researched by Government	For the lump sum of		\$ 250,125.00

Notes: 1. Overhead and profit costs associated with utility relocation shall be incorporated in the associated Price Schedule A CLIN, CLIN A-3 or A-4; price offered for CLINs A-3 and A-4 shall not include pass-through costs.
2. Amount listed by the Government is estimated and shall be used for offeror's proposal pricing.
3. Include costs not listed in Price Schedule D in Price Schedule A CLINs.

TOTAL FOR PRICE SCHEDULE D \$ 250,125.00

TOTAL FOR PRICE SCHEDULES A, B, C, and D \$ _____

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

END OF PRICE SCHEDULES

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

SECTION C – Statement / Description / Specification of Work

Please See Section J Attachment(s) 1-3 for specifications, drawings, and supporting data.

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

SECTION D – Packaging and Marking

There are no clauses included in this section.

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

SECTION E – Inspection and Acceptance

E.1 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEBRUARY 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at the following addresses:

FAR Clauses - <https://www.acquisition.gov/far/>

CLAUSES INCORPORATED BY REFERENCE		
Clause	Title	Date
52.246-12	Inspection of Construction	August 1996

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

SECTION F -- Deliveries or Performance

F.1 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEBRUARY 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at the following addresses: FAR Clauses - <https://www.acquisition.gov/far/>

CLAUSES INCORPORATED BY REFERENCE		
Clause	Title	Date
52.242-14	Suspension of Work	April 1984

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

SECTION G - Contract Administration Data

G.1 1452.201-70 AUTHORITIES AND DELEGATIONS (SEPTEMBER 2011)

(a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work.

(b) The Contracting Officer will designate a Contracting Officer's Representative (COR) at time of award. The COR will be responsible for technical monitoring of the contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment.

(c) The COR is not authorized to perform, formally or informally, any of the following actions:

- (1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;
- (2) Waive or agree to modification of the delivery schedule;
- (3) Make any final decision on any contract matter subject to the Disputes Clause;
- (4) Terminate, for any reason, the Contractor's right to proceed;
- (5) Obligate in any way, the payment of money by the Government.

(d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The Contractor need not proceed with direction that it considers having been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers exceeding the COR's appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.

(e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph (d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.

(f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the COR via electronic transmission. This can be through email, mail, or fax. If by fax please request the appropriate fax number. Email is the preferred method of delivery.

(g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk.

(End of Clause)

G.2 DOI-AAAP 0028 ELECTRONIC INVOICING AND PAYMENT REQUIREMENTS – INVOICE PROCESSING PLATFORM (IPP) (APRIL 2013)

Payment requests must be submitted electronically through the U.S. Department of the Treasury's Internet Payment Platform System (IPP).

Solicitation**Document No.**

140R6026R0001

Document Title**Arkansas Valley Conduit (AVC) – Crowley Reach 1**

"Payment requests" means any request for contract financing payment or invoicing payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions-Commercial Items included in commercial item contracts. The IPP website address is: <https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice, failure to provide the items will result in invoice rejection:

- 1 – Quantity Surveys (if applicable)
- 2 – Current Copy of As-Built Drawings
- 3 – Quantity sheets reflecting the CLIN in schedule B, percentage complete, and bold any items nearing or exceeding 100% of the CLIN amount.
- 4 – Approved construction schedule

Once the invoice has been submitted into the IPP system, the Contractor shall also submit an electronic copy of the invoice to the following:

Contracting Officer: (David Bryan, david_bryan@ios.doi.gov)

Contract Specialist: (Monica Burgio, monica_burgio@ios.doi.gov)

Procurement Technician: (Thomas (Scott) Becker, thomas_becker@ios.doi.gov)

Failure to transmit invoices via electronic transmission may cause significant delay or possible rejection of your payment request.

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in CCR) will receive enrollment instructions via email from the Federal Reserve Bank of Boston (FRBB) within 3-5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email ippgroup@bos.frb.org or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

(End of Clause)

G.3 WBR 1452.242-80 POST AWARD CONFERENCE BUREAU OF RECLAMATION (MARCH 2022)

(a) Prior to the contractor starting work, a postaward conference (as described in FAR Subpart 42.5), will be convened by the contracting activity or contract administration office. The contractor's project manager shall attend the conference. If the contract involves subcontractors, a representative of each major subcontractor is also required to attend.

(b) The conference will be held at Southeastern Colorado Water Conservancy District office, 31717 E United Ave, Pueblo, CO 81001. If it cannot be held in-person for any reason, it will be held virtually using Microsoft Teams. If held virtually, each attendee shall attend using a separate computer/camera.

(c) The Contracting Officer and the Contractor will agree to the date and time of the conference after award of the contract. In event of a conflict in schedules, the contracting officer shall establish the date for the conference.

(d) The Contractor shall not be entitled to the reimbursement any costs associated with attendance at the conference beyond the agreed-to contract price.

(End of Clause)

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

G.4 WBR 1452.201-80 CONTRACTING OFFICER'S REPRESENTATIVE'S AUTHORITIES AND LIMITATIONS BUREAU OF RECLAMATION (MAY 2018)

(a) Performance of the work under this contract shall be subject to the technical direction of the Reclamation Contracting Officer's Representative (COR). The term "technical direction" is defined to include, without limitation:

- (1) Inspecting and accepting or rejecting work performed under the contract.
- (2) Representing the Government in technical phases of the work. The COR is responsible for the technical administration of the contract and will provide instructions and interpretations to the Contractor on all technical matters relating to the contract. The COR will supervise or oversee all Government technical and administrative personnel assigned to assist the COR.
- (3) Reviewing and, where required by the contract, approving submittals of technical data, shop drawings, samples, literature, plans, or other data required to be delivered by the Contractor to the Government.

(b) The Contractor will receive a copy of the written COR designation from the Contracting Officer. It will specify the extent of the COR's authority to act on behalf of the Contracting Officer.

(c) Technical direction must be within the scope of work stated in the contract. Only the Contracting Officer is authorized to determine if a change is within the scope of the contract; therefore, the COR does not have the authority to, and may not, issue any technical direction that -

- (1) Constitutes a direction of additional work outside the Contract requirements;
- (2) Constitutes a change as defined in the contract clause entitled "Changes;"
- (3) In any manner causes an increase or decrease in the total contract cost, or the time required for contract performance;
- (4) Changes any of the expressed terms, conditions or specifications of the contract; or
- (5) Interferes with the Contractor's right to perform the terms and conditions of the contract.

(d) All technical direction shall be issued in writing by the COR.

(e) The Contractor must proceed promptly with the performance of technical direction duly issued by the COR in the manner prescribed by this clause and within its authority under the provisions of this clause. If, in the opinion of the Contractor, any instruction or direction by the COR falls within one of the categories defined in (c)(1) through (c)(5) of this clause, the Contractor must not proceed and must notify the Contracting Officer in writing within five (5) working days after receipt of any such instruction or direction and must request the Contracting Officer to modify the contract accordingly. Upon receiving the notification from the Contractor, the Contracting Officer must -

- (1) Advise the Contractor in writing after receipt of the Contractor's letter that the technical direction is within the scope of the contract effort and does not constitute a change under the Changes clause of the contract; or
- (2) Advise the Contractor that the Government will issue a written change order.

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	---

(f) A failure of the Contractor and Contracting Officer either to agree that the technical direction is within the scope of the contract or to agree upon the contract action to be taken with respect to the technical direction will be subject to the provisions of the clause entitled “Disputes.”

(End of clause)

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

SECTION H -- Special Contract Requirements

H.1 OPTION FOR RIGHT-OF-WAY DEPENDENT WORK (OPTIONAL PRICE SCHEDULE B)

(a) Description of Option Work

The work identified in Contract Line Item Numbers (CLINs) B-1 through B-20 is contingent upon the Government obtaining the necessary right-of-way from Union Pacific Railroad. The Contractor shall not commence this work until the Contracting Officer issues a formal written notice exercising the option.

(b) Government Right to Exercise the Option

The Government may exercise this option by written notice to the Contractor at any time within 367 days after the start of the contract Period of Performance (POP). If exercised on or before this date, no adjustment shall be made to the contract's overall POP.

(c) Option Exercise After 367 days from POP start date

If the Government exercises the option after 367 days from the POP start date, the Contractor shall be entitled to an equitable extension of the POP. The extension will consist of the minimum number of calendar days reasonably required to complete the option work, considering site conditions, access constraints, and project sequencing. The Contracting Officer will issue a unilateral modification establishing the adjusted POP.

(d) Pricing of Option Work

The Contractor's pricing for CLINs B-1 through B-20 shall include all labor, materials, equipment, mobilization/demobilization, additional insurance, and other incidentals necessary to perform the option work. Pricing shall remain valid through the latest date by which the Government may exercise the option, as stated in this clause.

(e) No Duty to Exercise

The Government is under no obligation to exercise this option. The Contractor shall have no claim for lost profits, standby costs, or other damages should the Government choose not to exercise the option.

(f) Notice of Expectation Only

Any discussions, schedules, forecasts, or informal communications regarding potential right-of-way timing shall not constitute notice of intent to exercise the option or obligate the Government in any way.

H.2 VARIATION IN ESTIMATED QUANTITY

If the quantity of a unit-priced item in this contract is an estimated quantity and the actual quantity of the unit-priced item varies more than 15 percent above or below the estimated quantity, an equitable adjustment in the contract price shall be made upon demand of either party. The equitable adjustment shall be based upon any increase or decrease in costs due solely to the variation above 115 percent or below 85 percent of the estimated quantity. If the quantity variation is such as to cause an increase in the time necessary for completion, the Contractor may request, in writing, an extension of time, to be received by the Contracting Officer within 10 days from the beginning of the delay, or within such further period as may be granted by the Contracting Officer before the date of final settlement of the contract. Upon the receipt of a written request for an extension, the Contracting Officer shall ascertain the facts and make an adjustment for extending the completion date as, in the judgement of the Contracting Officer, is justified.

(End of clause)

H.3 DOI-AAAP-0050 CONTRACTOR PERFORMANCE ASSESSMENT REPORTING SYSTEM (DECEMBER 2015)

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	---

1) FAR 42.1502 directs all Federal agencies to collect past performance information on contracts. The Department of the Interior (DOI) has implemented the Contractor Performance Assessment Reporting System (CPARS) to comply with this regulation. One or more past performance evaluations will be conducted in order to record your contract performance as required by FAR 42.15.

2) The past performance evaluation process is a totally paperless process using CPARS. CPARS is a web-based system that allows for electronic processing of the performance evaluation report. Once the report is processed, it is available in the Past Performance Information Retrieval System (PPIRS) for Government use in evaluating past performance as part of a source selection action.

3) We request that you furnish the Contracting Officer (CO) with the name, position title, phone number, and email address for each person designated to have access to your firm's past performance evaluation(s) for the contract no later than 30 days after award. Each person granted access will have the ability to provide comments in the Contractor portion of the report and state whether or not the Contractor agrees with the evaluation, before returning the report to the Assessing Official (AO). Information in the report must be protected as source selection sensitive information not releasable to the public.

4) When your Contractor Representative(s) are registered in CPARS, they will receive an automatically generated email with detailed login instructions. Further details, systems requirements, and training information for CPARS is available at <https://www.cpars.gov/>.

5) Within 60 days after the end of a performance period, the AO will complete an interim or final past performance evaluation, and the report will be accessible at: <https://www.cpars.gov/>.

- a) Contractor Representatives may then provide comments in response to the evaluation or return the evaluation without comment.
- b) Your comments should focus on objective facts in the AO's narrative and should provide your views on the causes and ramifications of the assessed performance.
- c) All information provided should be reviewed for accuracy prior to submission.
- d) If you elect not to provide comments, please acknowledge receipt of the evaluation by indicating "No comment" in the space provided, and then selecting "Accept the Ratings and Close the Evaluation".
- e) Your response is due within 60 calendar days after receipt of the CPAR. On day 15, the evaluation will become available in PPIRS-RC marked as "Pending" with or without comments and whether or not it has been closed.
- f) If you do not sign and submit the CPAR within 60 days, it will automatically be returned to the Government and will be annotated: "The report was delivered/received by the contractor on (date). The contractor neither signed nor offered comment in response to this assessment."

6) The following guidelines apply concerning your use of the past performance evaluation:

- a) Protect the evaluation as source selection information. After review, transmit the evaluation by completing and submitting the form through CPARS. If for some reason you are unable to view and/or submit the form through CPARS, contact the CO for instructions.
- b) Strictly control access to the evaluation within your organization. Ensure the evaluation is never released to persons or entities outside of your control.
- c) Prohibit the use of or reference to evaluation data for advertising, promotional material, pre-award surveys, responsibility determinations, production readiness reviews, or other similar purposes.

7) If you wish to discuss a past performance evaluation, you should request a meeting in writing to the CO no later than seven days following your receipt of the evaluation. The meeting will be held in person or via telephone or other means during your 60-day review period.

8) A copy of the completed past performance evaluation will be available in CPARS for your viewing and for Government use supporting source selection actions after it has been finalized.

(End of Clause)

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

SECTION I - Contract Clauses

I.1 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEBRUARY 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at the following addresses:

FAR Clauses - <https://www.acquisition.gov/far/>

CLAUSES INCORPORATED BY REFERENCE		
Clause	Title	Date
52.202-1	Definitions	June 2020
52.203-3	Gratuities	April 1984
52.203-5	Covenant Against Contingent Fees	May 2014
52.203-6	Restrictions on Subcontractor Sales to the Government	June 2020
52.203-7	Anti-Kickback Procedures	June 2020
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity	May 2014
52.203-10	Price Or Fee Adjustment For Illegal Or Improper Activity	May 2014
52.203-12	Limitation On Payments To Influence Certain Federal Transactions	June 2020
52.203-13	Contractor Code of Business Ethics and Conduct	November 2021
52.203-17	Contractor Employee Whistleblower Rights	November 2023
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	January 2017
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards (RFO-DEVIATION March 2026)	June 2020
52.204-13	System for Award Management Maintenance (RFO-DEVIATION March 2026)	October 2018
52.204-14	Service Contract Reporting Requirements (RFO-DEVIATION March 2026)	October 2016
52.204-19	Incorporation by Reference of Representations and Certifications	December 2014
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, or Proposed for Debarment	January 2025
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters	October 2018
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations	November 2015
52.210-1	Market Research (RFO-DEVIATION July 2025)	November 2021
52.215-2	Audit and Records – Negotiations	June 2020
52.215-8	Order of Precedence – Uniform Contract Format	October 1997
52.215-11	Price Reduction for Defective Certified Cost or Pricing Data—Modifications	June 2020
52.215-13	Subcontractor Certified Cost or Pricing Data-Modifications	June 2020
52.215-20	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data	November 2021
52.215-21	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data – Modifications	November 2021

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	---

52.219-6	Notice of Total Small Business Set-Aside (RFO-DEVIATION January 2026)	November 2020
52.219-8	Utilization of Small Business Concerns (RFO-DEVIATION January 2026)	January 2025
52.219-14	Limitations on Subcontracting (RFO-DEVIATION January 2026)	October 2022
52.222-3	Convict Labor	June 2003
52.222-4	Contract Work Hours and Safety Standards Act – Overtime Compensation	May 2018
52.222-6	Construction Wage Rate Requirements	August 2018
52.222-7	Withholding of Funds	May 2014
52.222-8	Payrolls and Basic Records	August 2018
52.222-9	Apprentices and Trainees	July 2005
52.222-10	Compliance with Copeland Act Requirements	February 1988
52.222-11	Subcontracts (Labor Standards)	May 2014
52.222-12	Contract Termination – Debarment	May 2014
52.222-13	Compliance with Construction Wage Rate Requirements and Related Regulations	May 2014
52.222-14	Disputes Concerning Labor Standards	February 1988
52.222-15	Certification of Eligibility	May 2014
52.222-35	Equal Opportunity for Veterans	June 2020
52.222-36	Equal Opportunity for Workers with Disabilities	June 2020
52.222-37	Employment Reports on Veterans	June 2020
52.222-40	Notification of Employee Rights Under the National Labor Relations Act	December 2010
52.222-50	Combating Trafficking in Persons	October 2025
52.222-54	Employment Eligibility Verification	January 2025
52.222-55	Minimum Wages Under Executed Order 13658	January 2022
52.222-62	Paid Sick Leave Under Executive Order 13706	January 2022
52.223-3 Alt I	Hazardous Material Identification and Material Safety Data – Alternate I (February 2021)	July 1995
52.225-13	Restrictions on Certain Foreign Purchases	February 2021
52.226-7	Drug-Free Workplace	May 2024
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving	May 2024
52.227-1	Authorization and Consent	June 2020
52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement	June 2020
52.227-4	Patent Indemnity – Construction Contracts	December 2007
52.228-2	Additional Bond Security	October 1997
52.228-5	Insurance – Work on a Government Installation	January 1997
52.228-11	Pledges Of Assets	February 2021
52.228-12	Prospective Subcontractor Requests for Bonds	December 2022
52.228-14	Irrevocable Letter of Credit	November 2014
52.228-15	Performance and Payment Bonds–Construction	June 2020
52.229-3	Federal, State And Local Taxes (RFO-DEVIATION March 2026)	February 2013
52.230-2	Cost Accounting Standards	June 2020
52.230-3	Disclosure and Consistency of Cost Accounting Practices	June 2020
52.230-6	Administration of Cost Accounting Standards	June 2010

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	---

52.232-5	Payments Under Fixed-Price Construction	May 2014
52.232-16	Progress Payments	November 2021
52.232-17	Interest	May 2014
52.232-23	Assignment Of Claims	May 2014
52.232-27	Prompt Payment for Construction Contracts	January 2017
52.232-33	Payment by Electronic Funds Transfer-System for Award Management	October 2018
52.232-39	Unenforceability of Unauthorized Obligations	June 2013
52.232-40	Providing Accelerated Payment to Small Business Subcontractors	March 2023
52.233-1	Disputes	May 2014
52.233-3	Protest After Award	August 1996
52.233-4	Applicable Law for Breach of Contract Claim	October 2004
52.236-1	Performance of Work by the Contractor	April 1984
52.236-2	Differing Site Conditions (RFO-DEVIATION January 2026)	April 1984
52.236-3	Site Investigation and Conditions Affecting the Work (RFO-DEVIATION January 2026)	April 1984
52.236-5	Material and Workmanship (RFO-DEVIATION January 2026)	April 1984
52.236-6	Superintendence by the Contractor (RFO-DEVIATION January 2026)	April 1984
52.236-7	Permits and Responsibilities (RFO-DEVIATION January 2026)	November 1991
52.236-8	Other Contracts (RFO-DEVIATION January 2026)	April 1984
52.236-9	Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements (RFO-DEVIATION January 2026)	April 1984
52.236-10	Operations and Storage Areas (RFO-DEVIATION January 2026)	April 1984
52.236-11	Use and Possession Prior to Completion (RFO-DEVIATION January 2026)	April 1984
52.236-12	Cleaning Up (RFO-DEVIATION January 2026)	April 1984
52.236-13	Accident Prevention (RFO-DEVIATION January 2026)	November 1991
52.236-15	Schedules for Construction Contracts (RFO-DEVIATION January 2026)	April 1984
52.236-16 Alt I	Quantity Surveys (RFO-DEVIATION January 2026) - Alt. I (April 1984)	April 1984
52.236-17	Layout of Work (RFO-DEVIATION January 2026)	April 1984
52.236-21 Alt II	Specifications and Drawings for Construction (RFO-DEVIATION January 2026) - Alt. II (April 1984)	April 1984
52.240-91	Security Prohibitions and Exclusions	RFO-DEVIATION March 2026
52.240-93	Basic Safeguarding of Covered Contractor Information Systems	RFO-DEVIATION March 2026
52.242-5	Payments to Small Business Subcontractors	January 2017
52.242-13	Bankruptcy	July 1995
52.243-4	Changes (RFO-DEVIATION OCTOBER 2025)	June 2007
52.244-2	Subcontracts	June 2020
52.244-5	Competition in Subcontracting	August 2024
52.246-21	Warranty of Construction	March 1994
52.248-3	Value Engineering – Construction	October 2025
52.249-2 Alt I	Termination for Convenience of the Government (Fixed-Price) - Alt. I (September 1996)	April 2012

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

52.249-10	Default (Fixed-Price Construction)	April 1984
52.253-1	Computer Generated Forms	January 1991

I.2 52.203-14 DISPLAY OF HOTLINE POSTER(S) (NOVEMBER 2021)

(a) Definition.

United States, as used in this clause, means the 50 States, the District of Columbia, and outlying areas.

(b) Display of fraud hotline poster(s). Except as provided in paragraph (c)—

(1) During contract performance in the United States, the Contractor shall prominently display in common work areas within business segments performing work under this contract and at contract work sites-

(i) Any agency fraud hotline poster or Department of Homeland Security (DHS) fraud hotline poster identified in paragraph (b)(3) of this clause; and

(ii) Any DHS fraud hotline poster subsequently identified by the Contracting Officer.

(2) Additionally, if the Contractor maintains a company website as a method of providing information to employees, the Contractor shall display an electronic version of the poster(s) at the website.

(3) Any required posters may be obtained as follows:

<i>Poster(s)</i>	<i>Obtain from</i>
Hotline Posters IAW DIAR 1403.1004	Downloadable hotline posters as well as instructions for obtaining a hard copy poster are available at https://www.dol.gov/general/topics/posters & https://www.doioig.gov/complaints-requests/contractor-recipient-resources

(i) Appropriate agency name(s) and/or title of applicable Department of Homeland Security fraud hotline poster); and

(ii) The website(s) or other contact information for obtaining the poster(s).)

(c) If the Contractor has implemented a business ethics and conduct awareness program, including a reporting mechanism, such as a hotline poster, then the Contractor need not display any agency fraud hotline posters as required in paragraph (b) of this clause, other than any required DHS posters.

(d) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (d), in all subcontracts that exceed the threshold specified in Federal Acquisition Regulation 3.1004(b)(1) on the date of subcontract award, except when the subcontract —

(1) Is for the acquisition of a commercial product or commercial service; or

(2) Is performed entirely outside the United States.

(End of clause)

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

I.3 52.219-28 POSTAWARD SMALL BUSINESS PROGRAM REPRESENTATION (JANUARY 2025) (RFO-DEVIATION JANUARY 2026)

(a) *Definitions.* As used in this clause—

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support--table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under *NAICS Code* _____ assigned to *contract number* _____.

(2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.]* The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). *[The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]*

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). *[The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]*

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. *[The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]*

(6) *HUBZone joint venture eligible under the HUBZone Program.* *[Complete only if the offeror is a HUBZone small business concern.]* The offeror represents, as part of its offer, that It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). *[The Contractor shall enter the name and unique entity identifier of each party to the joint venture: _____.]* Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. *[Contractor to sign and date and insert authorized signer's name and title. _____]*

(End of Clause)

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

I.4 52.222-9 APPRENTICES AND TRAINEES (JULY 2005) (DEVIATION FEBRUARY 2025)

(a) Apprentices.

- (1) An apprentice will be permitted to work at less than the predetermined rate for the work performed when employed-
 - (i) Pursuant to and individually registered in a bona fide apprenticeship program registered with the U.S. Department of Labor, Employment and Training Administration, Office of Apprenticeship Training, Employer, and Labor Services (OATELS) or with a State Apprenticeship Agency recognized by the OATELS; or
 - (ii) In the first 90 days of probationary employment as an apprentice in such an apprenticeship program, even though not individually registered in the program, if certified by the OATELS or a State Apprenticeship Agency (where appropriate) to be eligible for probationary employment as an apprentice.
- (2) The allowable ratio of apprentices to journeymen on the job site in any craft classification shall not be greater than the ratio permitted to the Contractor as to the entire work force under the registered program.
- (3) Any worker listed on a payroll at an apprentice wage rate, who is not registered or otherwise employed as stated in paragraph (a)(1) of this clause, shall be paid not less than the applicable wage determination for the classification of work actually performed. In addition, any apprentice performing work on the job site in excess of the ratio permitted under the registered program shall be paid not less than the applicable wage rate on the wage determination for the work actually performed.
- (4) Where a Contractor is performing construction on a project in a locality other than that in which its program is registered, the ratios and wage rates (expressed in percentages of the journeyman's hourly rate) specified in the Contractor's or subcontractor's registered program shall be observed. Every apprentice must be paid at not less than the rate specified in the registered program for the apprentice's level of progress, expressed as a percentage of the journeyman hourly rate specified in the applicable wage determination.
- (5) Apprentices shall be paid fringe benefits in accordance with the provisions of the apprenticeship program. If the apprenticeship program does not specify fringe benefits, apprentices must be paid the full amount of fringe benefits listed on the wage determination for the applicable classification. If the Administrator determines that a different practice prevails for the applicable apprentice classification, fringes shall be paid in accordance with that determination.
- (6) In the event OATELS, or a State Apprenticeship Agency recognized by OATELS, withdraws approval of an apprenticeship program, the Contractor will no longer be permitted to utilize apprentices at less than the applicable predetermined rate for the work performed until an acceptable program is approved.

(b) Trainees. (1) Except as provided in 29 CFR 5.16, trainees will not be permitted to work at less than the predetermined rate for the work performed unless they are employed pursuant to and individually registered in a program which has received prior approval, evidenced by formal certification by the U.S. Department of Labor, Employment and Training Administration, Office of Apprenticeship Training, Employer, and Labor Services (OATELS). The ratio of trainees to journeymen on the job site shall not be greater than permitted under the plan approved by OATELS.

- (2) Every trainee must be paid at not less than the rate specified in the approved program for the trainee's level of progress, expressed as a percentage of the journeyman hourly rate specified in the applicable wage determination. Trainees shall be paid fringe benefits in accordance with the provisions of the trainee program. If the trainee program does not mention fringe benefits, trainees shall be paid the full amount of fringe benefits listed in the wage determination unless the Administrator of the Wage and Hour Division determines that there is an apprenticeship program associated with the corresponding journeyman wage rate

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

in the wage determination which provides for less than full fringe benefits for apprentices. Any employee listed on the payroll at a trainee rate who is not registered and participating in a training plan approved by the OATELS shall be paid not less than the applicable wage rate in the wage determination for the classification of work actually performed. In addition, any trainee performing work on the job site in excess of the ratio permitted under the registered program shall be paid not less than the applicable wage rate in the wage determination for the work actually performed.

(3) In the event OATELS withdraws approval of a training program, the Contractor will no longer be permitted to utilize trainees at less than the applicable predetermined rate for the work performed until an acceptable program is approved.

~~(c) Equal employment opportunity. The utilization of apprentices, trainees, and journeymen under this clause shall be in conformity with the equal employment opportunity requirements of Executive Order 11246, as amended, and 29 CFR Part 30.~~

(End of Clause)

I.5 52.223-2 REPORTING OF BIOBASED PRODUCTS UNDER SERVICE AND CONSTRUCTION CONTRACTS (MAY 2024) (DEVIATION FEBRUARY 2025)

(a) *Definitions.* As used in this clause—

Biobased product means a product determined by the U.S. Department of Agriculture (USDA) to be a commercial product or industrial product (other than good or feed) that is composed, in whole or in significant part, of biological products, including renewable domestic agricultural materials and forestry materials, or that is an intermediate ingredient or feedstock. The term includes, with respect to forestry materials, forest products that meet biobased content requirements, notwithstanding the market share the product holds, the age of the product, or whether the market for the product is new or emerging. (7 U.S.C. 8101) (~~7 CFR 3201.2~~ [7 CFR part 4270.2]).

USDA-designated product category means a generic grouping of products that are or can be made with biobased materials—

- (1) That are listed by USDA in a procurement guideline (~~7 CFR part 3201, subpart D~~) available at <https://www.biopreferred.gov/resources/categories.html>; and
- (2) For which USDA has provided purchasing recommendations (available at <https://www.biopreferred.gov> [or 7 CFR part 4270]).

(b) The contractor shall report to <https://www.sam.gov>, with a copy to the Contracting Officer, on the product types and dollar value of any biobased products in USDA-designated product categories purchased by the Contractor during the previous Government fiscal year, between October 1 and September 30; and

(c) Submit this report no later than—

- (1) October 31 or each year during contract performance; and
- (2) At the end of the contract performance.

(End of Clause)

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

I.6 52.223-23 SUSTAINABLE PRODUCTS AND SERVICES (MAY 2024) (DEVIATION FEB 2025)

(a) Definitions. As used in this clause—

Biobased product means a product determined by the U.S. Department of Agriculture (USDA) to be a commercial product or industrial product (other than good or feed) that is composed, in whole or in significant part, of biological products, including renewable domestic agricultural materials and forestry materials, or that is an intermediate ingredient or feedstock. The term includes, with respect to forestry materials, forest products that meet biobased content requirements, notwithstanding the market share the product holds, the age of the product, or whether the market for the product is new or emerging. (7 U.S.C. 8101) (~~7 CFR 3201.2~~ [7 CFR part 4270.2])).

Recovered material means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process. (42 U.S.C. 6903).

Sustainable products and services means ~~products and services that are subject to and meet the following applicable statutory mandates and directives for purchasing:~~

(1) ~~Statutory purchasing programs.~~

~~(i) [(1)] Products containing recovered material designated by the U.S. Environmental Agency (EPA) under the Comprehensive Procurement Guidelines (42 U.S.C. 6962) (40 CFR part 247) (<https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program#products>).~~

~~(ii) [(2)] Energy- and water-efficient products that are ENERGY STAR® certified or Federal Energy Management Program (FEMP) -designated products (42 U.S.C. 8259b) (10 CFR part 436, subpart C) (<https://www.energy.gov/eere/femp/search-energy-efficient-products> and <https://www.energystar.gov/products?s=mega>).~~

~~(iii) [(3)] Biobased products meeting the content requirement of the USDA under the BioPreferred® program (7 U.S.C. 8102) (~~7 CFR part 3201~~ [7 CFR part 4270]) (<https://www.biopreferred.gov>).~~

~~(iv) [(4)] Acceptable chemicals, products, and manufacturing processes listed under EPA’s Significant New Alternatives Policy (SNAP) program, which ensures a safe and smooth transition away from substances that contribute to the depletion of stratospheric ozone (42 U.S.C. 76711) (40 CFR part 82, subpart G) (<https://www.epa.gov/snap>).~~

(2) ~~Required EPA purchasing programs.~~

~~(i) — WaterSense® labeled (water efficient) products and services (<https://www.epa.gov/watersense/watersense-products>).~~

~~(ii) — Safer Choice certified products (products that contain safer chemical ingredients) (<https://www.epa.gov/saferchoice/products>).~~

~~(iii) — Product and services that meet EPA Recommendations of Specifications, Standards, and Ecolabels in effect as of October 2023 (<https://www.epa.gov/greenerproducts/recommendations-specifications-standards-and-ecolabels-federal-purchasing>).~~

(b) Requirements.

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

- (1) The sustainable products and services, including the purchasing program and type of produce or service, that are applicable to this contract, and any products or services that are not subject to this clause, will be set forth in the statement of work or elsewhere in the contract.
- (2) The Contractor shall ensure that the sustainable products and services required by this contract are—
 - (i) Delivered to the Government;
 - (ii) Furnished for use by the Government;
 - (iii) Incorporated into the construction of a public building or public work; and
 - (iv) Furnished for use in performing services under this contract, where the cost of the products is a direct cost to this contract (versus costs which are normally applied to the Contractor’s general and administrative expenses or indirect costs). This includes services performed by contractors performing management and operation of Government-owned facilities to the same extent that, at the time of award, an agency would be required to comply if an agency operated or supported the facility.
- ~~(3) (i) Except as provided in paragraph (b) (3) (ii) of this clause, sustainable products and services must meet the applicable standards, specifications, or other program requirements at time of quote or offer submission; and~~
~~(ii) Sustainable products and services must meet the EPA Recommendations of Specifications, Standards, and Ecolabels in effect as of October 2023.~~

(c) *Resource.* The Green Procurement Compilation (GPC) available at <https://sftool.gov/greenprocurement> provides a comprehensive list of sustainable products and services and sustainable acquisition guidance. The Contractor should review the GPC when determining which **[statutory]** purchasing programs apply to a specific product or service.

(End of Clause)

I.7 52.225-9 BUY AMERICAN-CONSTRUCTION MATERIALS (OCTOBER 2022)

(a) *Definitions.* As used in this clause—

Commercially available off-the-shelf (COTS) item—

- (1) Means any item of supply (including construction material) that is—
 - (i) A commercial product (as defined in paragraph (1) of the definition of “commercial product” at Federal Acquisition Regulation (FAR) [2.101](#));
 - (ii) Sold in substantial quantities in the commercial marketplace; and
 - (iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and
- (2) Does not include bulk cargo, as defined in [46 U.S.C. 40102\(4\)](#), such as agricultural products and petroleum products.

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

"Construction material" means an article, material, or supply brought to the construction site by the Contractor or a subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means—

- (1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or
- (2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Critical component means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR [25.105](#).

Critical item means a domestic construction material or domestic end product that is deemed critical to U.S. supply chain resiliency. The list of critical items is at FAR [25.105](#).

Domestic construction material means—

- (1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both-
 - (i) An unmanufactured construction material mined or produced in the United States; or
 - (ii) A construction material manufactured in the United States, if-
 - (A) The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029. Components of foreign origin of the same class or kind for which nonavailability determinations have been made are treated as domestic. Components of unknown origin are treated as foreign; or
 - (B) The construction material is a COTS item; or
- (2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components".

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

Fastener means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

Foreign construction material means a construction material other than a domestic construction material.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

"United States" means the 50 States, the District of Columbia, and outlying areas.

(b) Domestic preference.

(1) This clause implements [41 U.S.C. chapter 83](#), Buy American, by providing a preference for domestic construction material. In accordance with [41 U.S.C. 1907](#), the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction materials, excluding COTS fasteners. (See FAR [12.505](#)(a)(2)). The Contractor shall use only domestic construction material in performing this contract, except as provided in paragraphs (b)(2) and (b)(3) of this clause.

(2) This requirement does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows: none

(3) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(2) of this clause if the Government determines that-

(i) The cost of domestic construction material would be unreasonable.

(A) *For domestic construction material that is not a critical item or does not contain critical components.*

(1) The cost of a particular domestic construction material subject to the requirements of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;

(2) For construction material that is not a COTS item and does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that is manufactured in the United States and does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that exceeds 55 percent domestic content as

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

a domestic offer and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(3)(i)(A)(1) of this clause.

(3) The procedures in paragraph (b)(3)(i)(A)(2) of this clause will no longer apply as of January 1, 2030.

(B) *For domestic construction material that is a critical item or contains critical components.*

(1) The cost of a particular domestic construction material that is a critical item or contains critical components, subject to the requirements of the Buy American statute, is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent plus the additional preference factor identified for the critical item or construction material containing critical components listed at FAR [25.105](#).

(2) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest foreign offer of construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer, and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(3)(i)(B)(1) of this clause.

(3) The procedures in paragraph (b)(3)(i)(B)(2) of this clause will no longer apply as of January 1, 2030.

(ii) The application of the restriction of the Buy American statute to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for determination of inapplicability of the Buy American statute.

(1)

(i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(3) of this clause shall include adequate information for Government evaluation of the request, including-

(A) A description of the foreign and domestic construction materials;

(B) Unit of measure;

(C) Quantity;

(D) Price;

(E) Time of delivery or availability;

(F) Location of the construction project;

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

(G) Name and address of the proposed supplier; and

(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(3)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.

(d) *Data*. To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

Foreign and Domestic Construction Materials Price Comparison			
Construction Material Description	Unit of Measure	Quantity	Price (dollars)*
Item1:			
Foreign construction material			
Domestic construction material			
Item2:			
Foreign construction material			
Domestic construction material			

(End of clause)

I.8 52.244-6 SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (JANUARY 2025) (DEVIATION FEBRUARY 2025)

(a) Definitions. As used in this clause—

Commercial product, commercial service and commercially available off-the-shelf item have the meanings contained in Federal Acquisition Regulation (FAR) 2.101.

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

Subcontract includes a transfer of commercial products or commercial services between divisions, subsidiaries, or affiliates of the Contractor or subcontractor at any tier.

(b) To the maximum extent practicable, the Contractor shall incorporate, and require its subcontractors at all tiers to incorporate, commercial products, commercial services, or non-developmental items as components of items to be supplied under this contract.

(c)
(1) The Contractor shall insert the following clauses in subcontracts for commercial products or commercial services:

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509), if the subcontract exceeds the threshold specified in FAR 3.1004(a) on the date of subcontract award, and has a performance period of more than 120 days. In altering this clause to identify the appropriate parties, all disclosures of violation of the civil False Claims Act or of Federal criminal law shall be directed to the agency Office of the Inspector General, with a copy to the Contracting Officer.

(ii) 52.203-15, Whistleblower Protections Under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5), if the subcontract is funded under the Recovery Act.

(iii) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR 3.900(a).

(iv) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017).

(v) 52.204-21, Basic Safeguarding of Covered Contractor Information Systems (Nov 2021) , other than subcontracts for commercially available off-the-shelf items, if flow down is required in accordance with paragraph (c) of FAR clause 52.204-21.

(vi) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(vii) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(viii) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(ix)
(A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) (Pub. L. 115–390, title II).
(B) Alternate I (Dec 2023) of 52.204-30.

(x) 52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C.637(d)(2) and (3)), if the subcontract offers further subcontracting opportunities. If the subcontract (except subcontracts to small business

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	---

concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(xi) ~~52.222-21, Prohibition of Segregated Facilities (Apr 2015)~~-Reserved

(xii) ~~52.222-26, Equal Opportunity (Sept 2016) (E.O. 11246)~~-Reserved

(xiii) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C.4212(a));

(xiv) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020)(29 U.S.C.793).

(xv) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C.4212).

(xvi) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496), if flow down is required in accordance with paragraph (f) of FAR clause 52.222-40.

(xvii)

(A) 52.222-50, Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (Mar 2015) of 52.222-50(22 U.S.C. chapter 78 and E.O. 13627).

(xviii) 52.222-55, Minimum Wages for Contractor Workers under Executive Order 14026 (Jan 2022), if flow down is required in accordance with paragraph (k) of FAR clause 52.222-55.

(xix) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706), if flow down is required in accordance with paragraph (m) of FAR clause 52.222-62.

(xx)

(A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a) if flow down is required in accordance with 52.224-3(f).

(B) Alternate I (Jan 2017) of 52.224-3, if flow down is required in accordance with 52.224-3(f) and the agency specifies that only its agency-provided training is acceptable).

(xxi) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxii) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) , if flow down is required in accordance with paragraph (c) of FAR clause 52.232-40.

(xxiii) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

(xxiv) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C.2631), if flow down is required in accordance with paragraph (d) of FAR clause 52.247-64.

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

(2) While not required, the Contractor may flow down to subcontracts for commercial products or commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(d) The Contractor shall include the terms of this clause, including this paragraph (d), in subcontracts awarded under this contract.

(End of clause)

I.9 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOVEMBER 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Department of the Interior Acquisition Regulation (48 CFR 14) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Clause)

I.10 1452.203-70 RESTRICTION ON ENDORSEMENTS DEPARTMENT OF INTERIOR (JULY 1996)

The Contractor shall not refer to contracts awarded by the Department of the Interior in commercial advertising, as defined in FAR 31.205-1, in a manner which states or implies that the product or service provided is approved or endorsed by the Government or is considered by the Government to be superior to other products or services. This restriction is intended to avoid the appearance of preference by the Government toward any product or service. The Contractor may request the Contracting Officer to make a determination as to the propriety of promotional material.

(End of Clause)

I.11 1452.204-70 RELEASE OF CLAIMS DEPARTMENT OF THE INTERIOR (JULY 1996)

After completion of work and prior to final payment, the Contractor shall furnish the Contracting Officer with a release of claims against the United States relating to this contract. The Release of Claims form (DI-137) shall be used for this purpose. The form provides for exception of specified claims from operation of the release.

(End of Clause)

I.12 1452.215-70 EXAMINATION OF RECORDS BY THE DEPARTMENT OF THE INTERIOR (APRIL 1984)

For purposes of the Examination of Records by the Comptroller General clause of this contract (FAR 52.215-1), the Secretary of the Interior, the Inspector General, and their duly authorized representative(s) from the Department of the Interior shall have the same access and examination rights as the Comptroller General of the United States.

(End of Clause)

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

I.13 1452.228-70 LIABILITY INSURANCE – DEPARTMENT OF THE INTERIOR (JULY 1996)

- (a) The Contractor shall procure and maintain during the term of this contract and any extension thereof liability insurance in form satisfactory to the Contracting Officer by an insurance company which is acceptable to the Contracting Officer. The named insured parties under the policy shall be the Contractor and the United States of America. The amounts of the insurance shall be not less than as follows:

WORKERS' COMPENSATION AND EMPLOYER'S LIABILITY

\$100,000 minimum coverage

GENERAL LIABILITY

\$500,000 per occurrence

AUTOMOBILE LIABILITY

\$200,000 per person

\$500,000 per occurrence

\$20,000 per occurrence for property damage

- (b) Each policy shall have a certificate evidencing the insurance coverage. The insurance company shall provide an endorsement to notify the Contracting Officer 30 days prior to the effective date of cancellation or termination of the policy or certificate; or modification of the policy or certificate which may adversely affect the interest of the Government in such insurance. The certificate shall identify the contract number, the name and address of the Contracting Officer, as well as the insured, the policy number and a brief description of contract services to be performed. The contractor shall furnish the Contracting Officer with a copy of an acceptable insurance certificate prior to beginning the work.

(End of clause)

I.14 WBR 1452.223-81 SAFETY AND HEALTH – BUREAU OF RECLAMATION (OCTOBER 2022)

- (a) The Contractor shall not require any person employed in the performance of this contract (including subcontracts) to work under conditions which are unsanitary, hazardous, or dangerous to an employee's health or safety.

- (b) Contractor shall comply with the most current version of the Bureau of Reclamation's Reclamation Safety and Health Standards (RSHS) and, if incorporated, 52.236-13 Accident Prevention.

The RSHS manual shall be obtained at:

<http://www.usbr.gov/safety/rshs/index.html>

- (c) Comply with the standards (29 CFR) issued by the Occupational Safety and Health Administration (OSHA), U.S. Department of Labor, www.osha.gov.

- (d) In the event there is a conflict between the requirements contained in paragraphs (b) and (c) referenced herein, or in the Specifications and Drawings, the more stringent requirement shall prevail.

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

(e) If required in the Specifications and Drawings, the Contractor shall submit a written proposed safety program as prescribed in the RSHS and the written specifications.

(f) The Contractor shall maintain an accurate record of and shall report to the Contracting Officer (or authorized representative) in the manner prescribed by the Contracting Officer, all cases of death, occupational diseases, or traumatic injury to employees or the public involved, and property damage in accordance with the RSHS and OSHA guidelines.

(g) If the contractor deems that an updated version of the RSHS constitutes a substantive change to the contract, affecting price or time (or both), the contractor may request a contract modification in accordance with the terms of the contract.

(End of clause)

I.15 WBR 1452.232-81 – PAYMENT FOR MOBILIZATION AND PREPARATORY WORK – BUREAU OF RECLAMATION (MARCH 2022) ALT I (MARCH 2022)

(a) General. Payment for the Mobilization and Preparatory Work line item of the schedule will be made as reflected herein. To the extent that this line item exceeds the percentage of total contract pricing as estimated by the Contracting Officer in WBR 1452.236-85, Instruction for Mobilization and Preparatory Work Schedule Line Item, payment will be made as reflected in Section (d)(5) below. Reclamation will make payment to the Contractor in accordance with this clause for operations including, but not limited to, those necessary for --

- (1) Movement of personnel, equipment, supplies, and incidentals to the project site;
- (2) The establishment of offices, buildings, plants and other facilities, at the site (excludes temporary buildings (e.g. storage sheds, shops, offices) and utilities listed in the Operations and Storage Areas clause of this contract;
- (3) Payment of premiums for project bonds and insurance; and
- (4) Other work and operations which must be performed or costs incurred incident to the initiation of meaningful work at the site and for which the contract does not otherwise provide for payment.
- (5) Approved detailed logic diagram(s) and the baseline schedule.

(b) Facilities and equipment covered by mobilization work.

- (1) All facilities, plant, and equipment which are established at, or brought to, the site shall be deemed to be subject to the provisions of this paragraph unless the Contracting Officer specifically provides other written authorization for a particular item or items.
- (2) The Contractor shall be solely responsible for the adequacy, efficiency, use, protection, maintenance, repair, and preservation of all facilities, plant, and equipment on site.
- (3) The facilities, plant, and equipment covered by this paragraph shall not be dismantled or removed from the site prior to completion of the work under the contract without the written authorization of the Contracting Officer.

(c) Termination for default. Should the Contractor be terminated for default as provided by the Default clause of this contract --

- (1) All facilities, plant, and equipment on the site shall be subject to the Government's right to take possession of and utilize such items for the purpose of completing the work;

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	---

(2) The Contractor shall provide evidence of encumbrances, liens, or other security interests, to the Contracting Officer; and

(3) Any encumbrance, lien, or other security interest on such facilities, plant, or equipment shall be subordinated to the Government's rights under the Default clause of this contract to utilize all facilities, plant, and equipment to complete the work under the contract.

(d) Payment. Payment for mobilization and preparatory work under paragraph (a) of this clause shall be made at the contractor lump-sum price for this item as contained in the Schedule. Progress payments for mobilization and preparatory work shall be made as follows -

(1) In accordance with paragraph (g) of the Payments under Fixed Price Construction Contracts clause of this contract and upon submission of a proper invoice, the Government will reimburse the Contractor for the total amount of premiums paid for performance and payment bonds as required by the Performance and Payment Bond Requirements clause of this contract and for any insurance which is specified as payable by the Government under this contract.

(2) Except as provided in (d)(1) above, progress payments for mobilization and preparatory work shall not be considered a separate division of work for the purposes of progress payments and shall be subject to retainage before payment of the total amount for this contract line item.

(3) When progress payments totaling 5 percent of the total original contract amount have been made by the Government for all other work accomplished under the contract, the Government shall pay the Contractor 50 percent of the mobilization and preparatory work contract line item amount or 2.5 percent of the total original contract amount (whichever is the lower) exclusive of any payment already made to the Contractor for performance and payment bond premiums and specified insurance under subparagraph (d).

(4) When progress payments totaling 10 percent of the total original contract amount have been made by the Government for all other work accomplished under the contract and upon approval of the detailed logic diagram(s) and baseline schedule, the balance of the amount for the mobilization and preparatory work contract line item or 5 percent of the total original contract amount (whichever is the lower) shall be paid to the contractor.

(5) If the schedule amount for mobilization and preparatory work on a schedule exceeds the total of the payments allowed under (3) and (4) above, the balance shall be paid when the schedule work is substantially complete as determined by the Contracting Officer.

(End of Clause)

I.16 WBR 1452.236-84 PRESERVATION OF CULTURAL RESOURCES BUREAU OF RECLAMATION (MARCH 2022)

(a) Definitions.

"Cultural items" as defined by Native American Graves Protection and Repatriation Act (NAGPRA) include Native American human remains, funerary objects, sacred objects, and objects of cultural patrimony.

"Cultural resources" is a broad term that includes prehistoric, historic, architectural, and traditional cultural properties; specific items include, but are not limited to, human skeletal remains, archaeological artifacts, records, and material remains related to such properties.

"Funerary objects" means Native American items that, as part of the death rite or ceremony of a culture, are reasonably believed to have been placed intentionally at the time of death or later with or near individual human remains.

"Human remains" means the physical remains of the body of a person.

"Native American" means of, or relating to, a tribe, people, or culture that is indigenous to the United States.

"Sacred objects" means Native American items that are specific ceremonial objects needed by traditional Native American religious leaders for the practice of traditional Native American religions by their present-day adherents. These items are specifically limited to objects that were devoted to a traditional Native American religious ceremony or ritual and which have religious significance or function in the continued observance or renewal of such ceremony.

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

"Objects of cultural patrimony" means Native American items having ongoing historical, traditional, or cultural importance central to the Native American tribe or Native Hawaiian organization itself, rather than property owned by an individual tribal or organization member. These objects are of such central importance that they may not be alienated, appropriated, or conveyed by any individual tribal or organization member.

(b) General. Federal legislation provides for the protection and preservation of cultural resources that may be impacted or altered as a result of any Federal project, activity, or program or federally licensed or assisted project, activity, or program.

(c) Discovery of Resources. Should the Contractor, or any of the Contractor's employees, subcontractors, or parties operating or associated with the Contractor, in the performance of this contract discover evidence of possible cultural resources, the Contractor shall immediately cease work at that location and provide oral notification to the contracting officer, giving location and nature of the findings. The Contractor shall forward a written report of findings to the Contracting Officer within 48 hours.

(i) If a cultural resource is determined by Reclamation to be a Native American cultural item, then the Contractor shall cease the activity in the area of the discovery, make a reasonable effort to protect the items discovered, and wait for written approval from the Contracting Officer before resuming activity.

(ii) If the discovery occurs on tribal lands, the Contractor shall immediately orally notify the responsible tribal official and the Contracting Officer and follow with written confirmation within 48 hours to the responsible tribal official and the contracting officer. (The contracting officer will supply the name and phone number of the tribal official.

(iii) The Contractor shall exercise care so as not to disturb or damage any cultural resources discovered during the execution of this contract and shall provide such cooperation and assistance as may be necessary to preserve the findings for removal or other disposition by Reclamation. The Contractor shall not resume work in the area of a discovery until written notice to proceed is received from the contracting officer.

(d) Approval of Use Areas and Borrow Sources. If the Contractor proposes to use a location other than an approved location (approved locations to be provided by the contracting officer), the location(s) must first be approved for use by the contracting officer. When considering an unapproved use area or borrow source, the Contractor shall submit a map showing the location to the contracting officer at least 45 calendar days in advance of any proposed use. The Contractor or his subcontractors shall take no action to use or alter the proposed location until written approval is provided by the contracting officer.

(e) Compensation for Delays. Where appropriate by reason of discovery, the contracting officer may order changes in the schedule or work. If such delays or changes are ordered, any equitable adjustment under the contract will be provided in accordance with the applicable clauses of the contract.

(f) Subcontractors. The Contractor shall insert this clause in all subcontracts that involve performance of work on job site terrain.

(g) Cost. Except as provided in subsection (e) above, the cost of complying with this contract clause shall be included in the prices offered in the schedule for other items of work.

(h) Government Access. The Contractor's arrangement with landowners shall permit the Government or its representatives access to the land to identify cultural resources and conduct appropriate inspections during the Contractor's use of the area or during material procurement.

(End of Clause)

I.17 WBR 1452.237-80 SECURITY REQUIREMENTS – BUREAU OF RECLAMATION (MARCH 2022)

(a) General Security Requirements:

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	---

- (1) This clause addresses security requirements, including general procedural requirements, information security requirements, contractor employee suitability requirements, identification card requirements, site security requirements, vessel exclusion barriers, and information technology security requirements. Within this clause, COR means Contracting Officer's Representative. If there is no COR appointed and identified to the Contractor, the term instead will mean the Program Manager or any other authorized individual responsible for technical oversight under the contract. "Work site" means the Government facility, office, construction site, and any other area within the Government office or facility that the Contractor must access to accomplish work under this contract.
- (2) The work performed under this contract shall only be accomplished by individuals (in the employment of the Contractor or any subcontractors) whose conduct and behavior is consistent with the efficiency of the Federal Service and the requirements of this contract, and who are acceptable to the contracting officer. If Reclamation finds a Contractor employee to be unsuitable or unfit for his or her assigned duties, the contracting officer will direct the Contractor to remove the individual from the contract and access to the Federal facility at which the contract activities are occurring.
- (3) The Contractor's employees governed by this contract may need access to sensitive information and/or sensitive areas. The Federal Government (Government) reserves the right, in its sole discretion, to determine suitability of Contractor personnel and deny access to any sensitive information or project specific area to any personnel for any cause.
- (4) The Contractor is responsible for informing and ensuring compliance by its employees with any applicable security procedures of the Government facility where work may be performed under this contract.
- (5) Any Contractor employee that will have access to a Federally-controlled facility or information system will be required to have a Government-issued identification card, consisting of a Personal Identity Verification (PIV) Card, a temporary identification card, or a visitor badge. (Note: within the Department of the Interior this card is known as a DOI Access Card.) During performance of the contract, the Contractor shall keep the COR apprised of any changes in personnel, or changes in personnel access or duration, to ensure that performance is not delayed by compliance with credentialing processes.
- (6) A Contractor employee will not be provided access to a Government facility or information system until a Government PIV Card, temporary identification card, or visitor identification badge has been issued to the Contractor employee. For those individuals that will be receiving a PIV Card, the Government may, at its discretion, issue a temporary identification card or visitor identification badge after the electronic background investigation forms have been received and the investigation is initiated.
- (7) All Contractor employees shall access the facility via the facility's entry screening system and visibly display the Government-issued PIV Card, temporary identification card, or visitor identification badge at all times. Contractor employees must visibly wear the Government-issued identification card at all times they are on Government facilities. Contractor employees are responsible for the safekeeping of all Government-issued identification cards, whether on-site or off-site. Cards that have been lost, damaged, or stolen must be reported to the COR and DOI Access Sponsor immediately, but not later than within 24 hours. The Contractor shall return all identification cards and card keys and any other Government property and information upon completion of performance or when personnel depart permanently or for a period of 7 days or more. The Contractor may be required to turn in access control cards or identification cards on a daily basis
- (8) Misuse or loss of access control or identification cards, or failure to comply with required surrender of such cards may, at Government discretion, result in Contractor personnel being denied access to the work site, at no cost to Government. The Contractor may be charged up to \$500 for each occurrence for any required replacement of Government-issued access control or identification cards due to loss or misuse. At the end of contract performance, or when a Contractor employee is no longer working under this contract, the Contractor shall ensure that all access control and identification cards are returned to the COR.

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	---

- (9) All Contractor personnel, including subcontractor personnel, with access to the work site shall be U.S. citizens or foreign individuals legally residing in, or legally admitted to, the U.S. For all non-U.S. citizens working under this contract, irrespective of length of time working on the contract, the Contractor shall provide to the COR, legible and valid copies of the individual's passport and visa (unless individual is on the Visa Waiver Program) a minimum of 14 calendar days prior to beginning work or arriving at the facility. A driver's license is not acceptable identification. In addition, a completed form I-94 shall be submitted to the COR upon the individual's arrival at the work facility and prior to beginning work.
- (10) The Contractor shall report all contacts with entities, individuals, and counsel/representatives (including foreign entities and foreign nationals) who seek in any way to obtain unauthorized access to sensitive information or areas. The Contractor shall report any violations of contract provisions, laws, executive orders, regulations, and guidance to the contracting officer. The Contractor shall report any information raising a doubt as to whether an individual's eligibility for continued employment or access to sensitive information is consistent with the interests of National Security and the Public Trust.
- (11) Unsanctioned, negligent, or willful inappropriate action on the part of the Contractor (or its employees) may result in termination of the contract or removal of some Contractor employees from Reclamation facilities at no cost to the Government. These actions include, but are not limited to, exploration of a sensitive system and/or information, introduction of unauthorized and/or malicious software, inappropriate release of sensitive information, or failure to follow prescribed access control policies and/or security procedures. Failure to comply with Reclamation policies, procedures, or other published security requirements may result in termination of the contract or removal of some contracted employees from Reclamation buildings and/or facilities at no cost to the Government.
- (12) All provisions of this clause shall equally apply to all subcontractors. The Contractor shall incorporate the substance of this clause in all subcontracts.
- (13) These security requirements apply to all sections of this Contract including Contract Drawings and other Contract Specifications as applicable. Related documents include other general provisions of Construction or Operations and Maintenance type Contracts, including FAR clauses by reference or as amended by related documents.

(b) Information Security Requirements.

- (1) Sensitive Information. The term "sensitive information" means any information which warrants a degree of protection and administrative control as defined by Reclamation or that meets the criteria for exemption from public disclosure set forth under Sections 552 and 552a of Title 5, United States Code: the Freedom of Information Act and the Privacy Act. Sensitive information is generally categorized as CONTROLLED UNCLASSIFIED INFORMATION (CUI), but in some cases may include other unclassified information. (The protection of National Security information is beyond the scope of this clause. If any work on National Security information is required under this contract, it is addressed under other contract clauses.) The Contractor shall protect this type of information from unauthorized release into public domain, or to unauthorized persons, organizations, or subcontractors. Information which, either alone or in aggregate, is deemed sensitive by Reclamation shall be handled and protected in accordance with Reclamation Directives and Standards SLE 02-01 Identifying and Safeguarding Controlled Unclassified Information (CUI), which is available from the COR or at <http://www.usbr.gov/recman/DandS.html#sle>.
- i. Any Government-furnished information or material does not become the property of the Contractor and may be withdrawn at any time. Upon expiration or termination of the contract, all documents released to the Contractor and any material created using data from such documents shall be returned to the COR for final disposition. Government-furnished information residing on any electronic systems (laptops, servers, desktops, media) shall be deleted from those systems using a COR-approved data erasure solution. Only with prior authorization from the contracting officer may the Contractor retain the material. The Contractor or subcontractor shall not disclose or release the materials provided to the Contractor to any individuals of the Contractor's organization not directly engaged in providing services under the contract or that do not have a valid need-to-know. All technical data provided to the Contractor by the Government shall be protected from public or private disclosure in accordance with the markings printed on them. All other

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	---

information relating to the items to be delivered or the services to be performed under this contract shall not be disclosed by any means without prior approval of the contracting officer. Prohibited dissemination or disclosure includes, but is not limited to: permitting access to such information by foreign nationals or by immigrant aliens who may be employed by the Contractor, publication of technical or scientific papers, advertising, disclosure to Contractor staff not investigated and deemed acceptable at the appropriate information sensitivity level, and any other public release. The Contractor shall maintain, and furnish upon request of the contracting officer, records of the names of individuals who have access to sensitive material in its custody and the sensitive material to which the individuals had access. All questions regarding information security, access, and control shall be referred to the COR.

- ii. The Contractor shall not release to anyone outside the Contractor's organization any sensitive, or otherwise protected information, regardless of medium in which it is contained (for example, film, tape, document, electronic), pertaining to any part of this contract or any Reclamation program or activity, unless the contracting officer has given prior written approval. This includes, but is not limited to, news releases, marketing promotions, articles, interviews, reports, social media posts, and any other media releases. Requests for approval shall identify the specific information to be released, the medium to be used, the purpose for the release, and a description of the need-to-know. The Contractor shall submit its request to the contracting officer ten business days before the proposed date for release. Subcontractors shall submit requests for authorization to release through the prime Contractor to the contracting officer.
- iii. The Contractor shall notify the COR immediately when known or suspected loss/compromise of sensitive information or other documents, notes, drawings, sketches, reports, photographs, exposed film or similar information which may affect the security interests of Government has occurred. This requirement extends to employees and other personnel working on behalf of the Contractor, and expands responsibility to include prompt reporting of security issues, including observed or subsequently discovered efforts by unauthorized persons to gain unauthorized access to sensitive information.

(2) Classified Information.

- (i) The disclosure of U.S. Government documents by third parties can result in damage to our national security. While this contract may not deal directly with classified information, each contractor is obligated to protect classified information pursuant to all applicable laws and to use Government information technology systems in accordance with agency procedures so that the integrity of such systems is not compromised.
- (ii) Unauthorized disclosures of classified documents (whether in print, on a blog, or on websites, or other electronic or non-electronic media) do not alter the documents' classified status or automatically result in declassification of the documents. To the contrary, classified information, whether or not already posted on public websites or disclosed to the media, remains classified, and must be treated as such by Federal employees and contractors, until it is declassified by an appropriate U.S. Government authority. Executive Order 13526, Classified National Security Information (December 29, 2009), Section 1.1.(c) states, "Classified Information shall not be declassified automatically as a result of any unauthorized disclosure of identical or similar information." Although the Department has taken steps to prevent access to publicly disclosed classified materials from Departmental computers, it is important to understand our continuing duties and responsibilities in this regard.
- (iii) Contractors (which include all employees of the contractor, as well as subcontractors and its employees performing work for the contractor) are reminded of the following obligations with respect to the treatment of classified information and the use of unclassified government information technology systems:
- (iv) The contractor shall not, while using unclassified Government computers or other devices (such as phones or tablets) access documents that are marked classified (including classified documents made publicly available by a third party), as doing so risks that material still classified will be placed onto unclassified systems. This requirement does not restrict contractor access to unclassified, publicly available news reports (and other unclassified material) that may in turn discuss classified material, as distinguished from access to underlying documents that themselves are marked

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	---

classified (including if the underlying classified documents are available on public web sites or otherwise in the public domain).

(v) For contracts that require access to classified information, the contractor is responsible for obtaining the required national security clearance through the Department of the Defense National Industrial Security Program Operating Manual (NISPOM). Any classified contracts will be coordinated through the Reclamation Chief Security Officer, or for IT requirements, the Bureau Chief Information Security Officer. No contractor shall access classified information unless proper clearances have been obtained and transmitted to Reclamation. For further information, refer to 443 DM 1 or DOD NISPOM 5220.22-M dated February 28, 2006 (incorporating change 2 dated May 18, 2016).

(vi) Classified information shall not be removed from official premises.

(vii) Classified information shall not be disclosed without proper authorization.

(c) Reserved

(d) Reserved

(e) Reserved

(f) Reserved

(End of clause)

I.18 WBR 1452.243-80 MODIFICATION PROPOSALS – BUREAU OF RECLAMATION (MARCH 2022)

(a) In submitting any proposal for a modification under this contract (including any proposal for an equitable adjustment resulting from a change under the FAR Changes clause of this contract), the contractor shall:

(1) Comply with the contract time limits for submission of a proposal or as specified by the contracting officer;

(2) Apply the contract cost principles and procedures in Part 31 of the Federal Acquisition Regulation (FAR) in effect on the date of this contract;

(3) Furnish a breakdown of all costs estimated to complete the work required by the modification (i.e., cost of added work, incurred cost of deleted work already performed, estimated cost of deleted work not yet performed, and net cost of the modification) to include all costs associated with materials (identified by item and quantity), equipment (identified by item, quantity and whether contractor-owned or rented), categories of direct labor, bond and insurance premium adjustments, subcontracts, overhead and other indirect costs, profit/fee, and any other pricing information requested by the contracting officer, in sufficient detail to permit an analysis of fair and reasonable price;

(4) Furnish a written justification for any requested time extensions; and

(5) For any pricing adjustment expected to exceed the threshold at FAR 15.403-4 requiring certified cost or pricing data (considering both increases and decreases) --

(i) Submit certified cost and pricing data using the format specified in Table 15-2 of FAR 15.408 unless the contracting officer agrees that an exception applies under the circumstances set forth in FAR 15.403-1;

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	---

(ii) Certify in substantially the format prescribed in FAR 15.406-2 that to the best of its knowledge and belief, the data are accurate, complete and current as of the date of agreement on the negotiated price of the modification; and

(iii) Comply with the requirements of either the FAR 52.215-12 Subcontractor Certified Cost or Pricing Data clause or the FAR 52.215-13 Subcontractor Certified Cost or Pricing Data -- Modifications clause of this contract when the adjustment includes a subcontract modification involving a pricing adjustment expected to exceed the threshold at FAR 15.403-4 requiring certified cost or pricing data.

(b) Under the FAR Changes clause of this contract, failure of the contractor to timely assert its right for an adjustment or to submit a proposal for an adjustment by the date specified in the clause (or another date specified by the contracting officer) may result in a unilateral adjustment of the contract by the contracting officer pursuant to the FAR 52.233-1 Disputes clause of this contract.

(End of Clause)

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

SECTION J – List of Attachments and Exhibits

Attachment Number	Description	Number of Pages
Attachment 1	AVC Crowley Reach 1 Specifications	1028
Attachment 2	AVC Crowley Reach 1 Drawings	89
Attachment 3	AVC Crowley Reach 1 Geology Drawings	76
Attachment 4	DRAFT UPRR Exhibit C – Insurance Requirements	2
Attachment 5	Davis-Bacon Act WD # CO20260002	9
Attachment 6	Past Performance Questionnaire Standard Form 24 - Bid Bond (10/2023)	4
Attachment 7	Construction Contract Administration	1

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

SECTION K – Representations, Certifications and Other Statements of Offerors

K.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEBRUARY 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a provision may be accessed electronically at the following addresses:

FAR provisions <https://www.acquisition.gov/far/>

PROVISIONS INCORPORATED BY REFERENCE		
Clause	Title	Date
52.240-90	Security Prohibitions and Exclusions Representations and Certifications	RFO-DEVIATION March 2026

K.2 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCTOBER 2018)

(a) Definitions. As used in this provision—

“Administrative proceeding” means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceeding at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

“Federal contracts and grants with total value greater than \$10,000,000” means—

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

“Principal” means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

(c) If the offeror checked “has” in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of Provision)

K.3 52.209-12 CERTIFICATION REGARDING TAX MATTERS (OCTOBER 2020)

(a) This provision implements section 523 of Division B of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts.

(b) If the Offeror is proposing a total contract price that will exceed \$5.5 million (including options), the Offeror shall certify that, to the best of its knowledge and belief, it

(1) Has ☐ filed all Federal tax returns required during the three years preceding the certification;

(2) Has not ☐ been convicted of a criminal offense under the Internal Revenue Code of 1986; and

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

(3) Has not ☐, more than 90 days prior to certification, been notified of any unpaid Federal tax assessment for which the liability remains unsatisfied, unless the assessment is the subject of an installment agreement or offer in compromise that has been approved by the Internal Revenue Service and is not in default, or the assessment is the subject of a non-frivolous administrative or judicial proceeding.

(End of Provision)

K.4 52.209-13 VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS – CERTIFICATION (NOVEMBER 2021)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.

(b) Certification. [Offeror shall check either (1) or (2).]

☐ (1) The Offeror certifies that–

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

☐ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If there may have been such activity, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

- (i) An inability to certify compliance.
- (ii) An inability to conclude compliance.
- (iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state . Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless—

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has

(i) Waived application under 22 U.S.C. 2593e(d) or (e); or

(ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C. 2593e(b).

(e) Remedies. The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

K.5 52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS (FEBRUARY 2024) (RFO-DEVIATION JANUARY 2026)

(a) *Definitions.* As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

HUBZone small business concern means a small business concern that meets the requirements described in [13 CFR 126.200](#), is certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Small Business Search (SBS) ([13 CFR 126.103](#)).

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern means a small business concern that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by one or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraph (1) of this definition.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 237110.

(2) The small business size standard is \$45 Million.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

(c) *Representations.*

(1) The offeror represents as part of its offer that—

(i) it ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.*]

(2) [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it ☐ is, ☐ is not a women-owned small disadvantage business concern.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.*]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.*]

(5) *SDVOSB joint venture eligible under the SDVOSB Program.* [*Complete only if the offeror is certified as a SDVOSB concern.*] The offeror represents as part of its offer that it ☐ is, ☐ is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.*]

(6) *HUBZone joint venture eligible under the HUBZone Program.* [*Complete only if the offeror is a HUBZone small business concern.*] The offeror represents, as part of its offer, that it ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: __.*] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.

(d) *Notice.* Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, will be—

(1) Punished by imposition of fine, imprisonment, or both;

(2) Subject to administrative remedies, including suspension and debarment; and

(3) Ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

SECTION L – Instructions, Conditions and Notices to Bidders

L.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEBRUARY 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a provision may be accessed electronically at the following addresses:

FAR provisions <https://www.acquisition.gov/far/>

PROVISIONS INCORPORATED BY REFERENCE		
Clause	Title	Date
52.204-7	System for Award Management (RFO-DEVIATION March 2026)	November 2024
52.207-1	Notice of Standard Competition	May 2006
52.215-1	Instruction to Offerors – Competitive	November 2021
52.232-13	Notice of Progress Payments	April 1984

L.2 52.216-1 – TYPE OF CONTRACT (APRIL 1984)

The Government contemplates award of a **Firm-Fixed-Price Contract** resulting from this solicitation.

(End of Provision)

L.3 52.222-5 CONSTRUCTION WAGE RATE REQUIREMENTS—SECONDARY SITE OF THE WORK (MAY 2014)

(a)

(1) The offeror shall notify the Government if the offeror intends to perform work at any secondary site of the work, as defined in paragraph (a)(1)(ii) of the FAR clause at [52.222-6](#), Construction Wage Rate Requirements, of this solicitation.

(2) If the offeror is unsure if a planned work site satisfies the criteria for a secondary site of the work, the offeror shall request a determination from the Contracting Officer.

(b)

(1) If the wage determination provided by the Government for work at the primary site of the work is not applicable to the secondary site of the work, the offeror shall request a wage determination from the Contracting Officer.

(2) The due date for receipt of offers will not be extended as a result of an offeror's request for a wage determination for a secondary site of the work.

(End of Provision)

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

L.4 52.225-10 NOTICE OF BUY AMERICAN REQUIREMENT – CONSTRUCTION MATERIALS (MAY 2014)

(a) *Definitions.* "Commercially available off-the-shelf (COTS) item," "construction material," "domestic construction material," and "foreign construction material," as used in this provision, are defined in the clause of this solicitation entitled "Buy American-Construction Materials" (Federal Acquisition Regulation (FAR) clause 52.225-9).

(b) *Requests for determinations of inapplicability.* An offeror requesting a determination regarding the inapplicability of the Buy American statute should submit the request to the Contracting Officer in time to allow a determination before submission of offers. The offeror shall include the information and applicable supporting data required by paragraphs (c) and (d) of the clause at FAR 52.225-9 in the request. If an offeror has not requested a determination regarding the inapplicability of the Buy American statute before submitting its offer, or has not received a response to a previous request, the offeror shall include the information and supporting data in the offer.

(c) Evaluation of offers.

(1) The Government will evaluate an offer requesting exception to the requirements of the Buy American statute, based on claimed unreasonable cost of domestic construction material, by adding to the offered price the appropriate percentage of the cost of such foreign construction material, as specified in paragraph (b)(3)(i) of the clause at FAR 52.225-9.

(2) If evaluation results in a tie between an offeror that requested the substitution of foreign construction material based on unreasonable cost and an offeror that did not request an exception, the Contracting Officer will award to the offeror that did not request an exception based on unreasonable cost.

(d) Alternate offers.

(1) When an offer includes foreign construction material not listed by the Government in this solicitation in paragraph (b)(2) of the clause at FAR 52.225-9, the offeror also may submit an alternate offer based on use of equivalent domestic construction material.

(2) If an alternate offer is submitted, the offeror shall submit a separate [Standard Form 1442](#) for the alternate offer, and a separate price comparison table prepared in accordance with paragraphs (c) and (d) of the clause at FAR 52.225-9 for the offer that is based on the use of any foreign construction material for which the Government has not yet determined an exception applies.

(3) If the Government determines that a particular exception requested in accordance with paragraph (c) of the clause at FAR 52.225-9 does not apply, the Government will evaluate only those offers based on use of the equivalent domestic construction material, and the offeror shall be required to furnish such domestic construction material. An offer based on use of the foreign construction material for which an exception was requested-

(i) Will be rejected as nonresponsive if this acquisition is conducted by sealed bidding; or

(ii) May be accepted if revised during negotiations.

(End of provision)

L.5 52.228-1 BID GUARANTEE (SEPTEMBER 1996)

(a) Failure to furnish a bid guarantee in the proper form and amount, by the time set for opening of bids, may be cause for rejection of the bid.

Solicitation**Document No.**

140R6026R0001

Document Title**Arkansas Valley Conduit (AVC) – Crowley Reach 1**

(b) The bidder shall furnish a bid guarantee in the form of a firm commitment, e.g., bid bond supported by good and sufficient surety or sureties acceptable to the Government, postal money order, certified check, cashier's check, irrevocable letter of credit, or, under Treasury Department regulations, certain bonds or notes of the United States. The Contracting Officer will return bid guarantees, other than bid bonds-

(1) To unsuccessful bidders as soon as practicable after the opening of bids; and

(2) To the successful bidder upon execution of contractual documents and bonds (including any necessary coinsurance or reinsurance agreements), as required by the bid as accepted.

(c) The amount of the bid guarantee shall be 20 percent of the bid price or \$3 million, whichever is less.

(d) If the successful bidder, upon acceptance of its bid by the Government within the period specified for acceptance, fails to execute all contractual documents or furnish executed bond(s) within 10 days after receipt of the forms by the bidder, the Contracting Officer may terminate the contract for default.

(e) In the event the contract is terminated for default, the bidder is liable for any cost of acquiring the work that exceeds the amount of its bid, and the bid guarantee is available to offset the difference.

(End of Provision)

L.6 SITE CONDITIONS AND PRESENTATION (CONSTRUCTION)

(a) The contract will include FAR clauses 52.236-2, Differing Site Conditions, and 52.236-3, Site Investigations and Conditions Affecting the Work. Offerors are highly encouraged to visit the site and review site conditions to inform their proposals.

(b) The Government will not conduct an organized site visit. Instead, a presentation providing key site and project information will be issued approximately two to three weeks after the solicitation is posted to SAM.gov. The presentation will be released through a future amendment.

(End of Provision)

L.7 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOVEMBER 2020)

As prescribed in [52.107\(e\)](#), insert the following provision in solicitations that include any FAR or supplemental provision with an authorized deviation. Whenever any FAR or supplemental provision is used with an authorized deviation, the contracting officer shall identify it by the same number, title, and date assigned to the provision when it is used without deviation, include regulation name for any supplemental provision, except that the contracting officer shall insert "(DEVIATION)" after the date of the provision.

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Department of the Interior Acquisition Regulation (48 CFR 14) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Provision)

Solicitation**Document No.**

140R6026R0001

Document Title

Arkansas Valley Conduit (AVC) – Crowley Reach 1

L.8 1452.215-71 USE AND DISCLOSURE OF PROPOSAL INFORMATION – DEPARTMENT OF THE INTERIOR (APRIL 1984)

(a) Definitions. For the purposes of this provision and the Freedom of Information Act (5 U.S.C. 552), the following terms shall have the meaning set forth below:

(1) "Trade Secret" means an unpatented, secret, commercially valuable plan, appliance, formula, or process, which is used for making, preparing, compounding, treating or processing articles or materials which are trade commodities.

(2) "Confidential commercial or financial information" means any business information (other than trade secrets) which is exempt from the mandatory disclosure requirement of the Freedom of Information Act, 5 U.S.C. 552. Exemptions from mandatory disclosure which may be applicable to business information contained in proposals include exemption (4), which covers "commercial and financial information obtained from a person and privileged or confidential," and exemption (9), which covers "geological and geophysical information, including maps, concerning wells."

(b) If the offeror, or its subcontractor(s), believes that the proposal contains trade secrets or confidential commercial or financial information exempt from disclosure under the Freedom of Information Act, (5 U.S.C. 552), the cover page of each copy of the proposal shall be marked with the following legend:

"The information specifically identified on pages _____ of this proposal constitutes trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act. The offeror requests that this information not be disclosed to the public, except as may be required by law. The offeror also requests that this information not be used in whole or part by the government for any purpose other than to evaluate the proposal, except that if a contract is awarded to the offeror as a result of or in connection with the submission of the proposal, the Government shall have the right to use the information to the extent provided in the contract."

(c) The offeror shall also specifically identify trade secret information and confidential commercial and financial information on the pages of the proposal on which it appears and shall mark each such page with the following legend:

"This page contains trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act and which is subject to the legend contained on the cover page of this proposal."

(d) Information in a proposal identified by an offeror as trade secret information or confidential commercial and financial information shall be used by the Government only for the purpose of evaluating the proposal, except that (i) if a contract is awarded to the offeror as a result of or in connection with submission of the proposal, the Government shall have the right to use the information as provided in the contract, and (ii) if the same information is obtained from another source without restriction it may be used without restriction.

(e) If a request under the Freedom of Information Act seeks access to information in a proposal identified as trade secret information or confidential commercial and financial information, full consideration will be given to the offeror's view that the information constitutes trade secrets or confidential commercial or financial information. The offeror will also be promptly notified of the request and given an opportunity to provide additional evidence and argument in support of its position, unless administratively unfeasible to do so. If it is determined that information claimed by the offeror to be trade secret information or confidential commercial or financial information is not exempt from disclosure under the Freedom of Information Act, the offeror will be notified of this determination prior to disclosure of the information.

(f) The Government assumes no liability for the disclosure or use of information contained in a proposal if not marked in accordance with paragraphs (b) and (c) of this provision. If a request under the Freedom of Information Act is made for information in a proposal not marked in accordance with paragraphs (b) and (c) of this provision, the offeror concerned shall be promptly notified of the request and given an opportunity to provide its position to the Government. However, failure of an offeror to mark information contained in a proposal as trade secret information or confidential commercial or financial information will be treated by the Government as evidence that the information is not exempt from disclosure under the Freedom of Information Act, absent a showing that the failure to mark was due to unusual or extenuating circumstances, such as a showing that the offeror had intended to mark, but that markings were omitted from the offeror's proposal due to clerical error.

(End of provision)

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

L.9 1452.233-2 – SERVICE OF PROTEST DEPARTMENT OF THE INTERIOR (JULY 1996) (DEVIATION)

- (a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Bureau of Reclamation
ATTN: David Bryan (AMD)
302 East Lakeview Pkwy
Provo, UT 84606-7317

- (b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

- (c) A copy of the protest served on the Contracting Officer shall be simultaneously furnished by the protester to the Department of the Interior Assistant Solicitor, Acquisitions and Intellectual Property, 1849 C Street, NW., Room 6511, Washington, DC 20240.

(End of Provision)

L.10 WBR 1452.215-81 PROPOSAL INSTRUCTIONS -- BUREAU OF RECLAMATION (MARCH 2021)

This procurement will be conducted in accordance with FAR Part 15.

In addition to the requirements of the Instructions to Offerors - Competitive Acquisitions provision of this solicitation (see FAR 52.215-1), each offeror shall submit a proposal in accordance with the instructions contained in this provision.

(a) Use and Disclosure of Proposal Information. In accordance with the Use and Disclosure of Proposal Information -- Department of the Interior provision of this solicitation (see DIAR 1452.215-71), offerors shall mark trade-secret or confidential commercial or financial information contained in the proposal with the restrictive legends specified. The offeror shall also clearly and separately mark all proprietary information (as defined in FAR 3.104-3) contained in the proposal with the restrictive legend "Proprietary Information."

(b) Proposal Volumes. Offerors shall submit separate electronic Volumes with the required number of copies as follows:

Volume	Title	Electronic Copies Required
I	Business Proposal	1 Document in PDF Format
II	Technical Proposal/Past Performance	1 Document in PDF Format
III	Pricing Proposal	1 Document in PDF Format

(c) General Contents. Each separate proposal Volume shall:

- (1) Be presented in a manner which allows it to "stand alone" without the need to reference other documents;
- (2) Be a coherent document free of internal inconsistencies as well as inconsistencies with other volumes of the proposal;
- (3) Conform to all solicitation provisions, clauses, or requirements;
- (4) Address the submission requirements with specificity and detail where required;

Solicitation**Document No.**
140R6026R0001**Document Title**
Arkansas Valley Conduit (AVC) – Crowley Reach 1

- (5) Be an orderly, specific, and complete document in every detail;
- (6) Be logically presented, using clear and concise language so that it can be easily read and meaningfully evaluated by Reclamation personnel from a variety of different functional and technical disciplines;
- (7) Have all pages in each volume consecutively numbered (including pages with tables and exhibits) and cross-referenced to other volumes where appropriate for each; and
- (8) Indicate how the proposal conforms to the evaluation criteria identified in Section M.

(d) Format. To assist in the uniform evaluation of proposals, the following format shall be used in preparing each separate proposal Volume:

- (1) Provide a Table of Contents which lists all sections specific to the proposal Volume;
- (2) Cross-reference the work statement to the terms of the proposal and indicate how the proposal conforms to the evaluation factors contained in Part IV, Section M;
- (3) Provide a list of any enclosures, including tables, drawings, charts, or other enclosures which summarize data or information;

(e) Volume I, Business Proposal. Volume I shall incorporate the other Volumes by reference but shall not physically include them. It shall consist of:

- (1) A cover page that includes the following information:
 - a. Solicitation Number and Project Name
 - b. Time and Date for Receipt of Proposals
 - c. Firm Name, Address, and SAM UEI
 - d. Point of Contact Information (Name, Phone Number(s), E-mail)
- (2) A Table of Contents which lists all sections specific to the proposal Volume;
- (3) A fully signed Standard Form 1442 "Solicitation, Offer, and Award" as required by Section A of this solicitation.
- (4) One (1) fully signed copy of each Amendment to the Solicitation representing acknowledgement;
- (5) Fully executed and completed offeror representations, certifications, and acknowledgments required by Section K of this solicitation;
- (6) SF24 Bid Bond Form and any additional information required by the solicitation to be furnished by the offeror which is not required to be obtained in another volume of the proposal;
- (7) Make-or-buy program (if applicable);
- (8) Requests for any waivers of any solicitation provisions or contract clauses; and
- (9) Exceptions to Solicitation Requirements: Offerors are required to meet all solicitation requirements, such as terms and conditions, representations and certifications, in addition to those identified as evaluation factors. Failure to meet a requirement may result in an offer being ineligible for award. Offerors must clearly identify any exception to the solicitation terms and

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	---

conditions and provide complete accompanying rationale. Each exception shall be specifically related to each paragraph and/or specific part of the solicitation, or specifications, to which the exception is taken. Provide rationale in support of the exception and fully explain its impact, if any, on the performance, schedule, cost, and specific requirements of the solicitation. This must be called out clearly in the proposal. Reclamation reserves the right to reject any and all exceptions to the solicitation and if the exception is to a major term or condition of the solicitation the proposal may be thrown out and not considered for award.

(f) Volume II – Technical Proposal (contains Evaluation Factor 1 (Technical Approach and Schedule) and Evaluation Factor 2 (Past Performance)). This volume shall consist of:

- (1) A cover page that includes the following information:
 - a. Solicitation Number and Project Name
 - b. Time and Date for Receipt of Proposals
 - c. Firm Name, Address, and SAM UEI
 - d. Point of Contact Information (Name, Phone Number(s), E-mail)
- (2) Table of Contents. The Table of Contents shall list all sections of the technical proposal. Any future amendments, additions and/or revisions to the proposal shall be included in an updated Table of Contents.
- (3) Index. The Index section shall cross reference the statement of work, specifications, or performance work statement to the terms of the proposal and indicate how the proposal conforms to the evaluation factors contained in Section M;
- (4) Enclosures. The Enclosures Section shall include a list of any tables, drawings, charts, and any other enclosures which summarize data or information;
- (5) PAGE LIMITATIONS. Technical proposals shall not exceed 50 Pages. The 50-page limit does not include the following: Cover Page, Table of Contents, Index, and Glossaries. Page limitations shall meet the following requirements:
 - a. Pages are 8 ½” x 11”.
 - b. Print size shall be a minimum of 12-point Times New Roman font.
 - c. Margins shall be no less than ½”.
 - d. Foldouts shall be held to 17” x 11” long in size, with each sheet counting as one 8 ½” x 11” page per side.
 - e. Pages must not include incorporations by reference (unless exception provided in Vol I & III).
 - f. Page limit/page count does not include any project schedule or requested completed attachments. Examples of requested attachments include charts, required forms, PPQs, SF 1442, Section K representatives and certifications, schedule B pricing pages, etc.
 - g. Page limitations shall be treated as maximums. If exceeded, the excess pages will not be read or considered in the evaluation of proposals.

(6) EVALUATION FACTORS:

Evaluation Factor 1: Technical Approach and Schedule

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	---

Provide detailed narrative work plans for each task identified below. The work plans shall identify potential subcontractors and significant anticipated material suppliers. The work plans shall correlate with the offeror's proposed construction schedule and explain in detail the offeror's, or subcontractor's, approach to accomplish the following specific construction tasks:

1. Trench construction within narrow Rights-of-Way
 - a) Identify methods to move and store excavated materials.
 - b) Provide assumed disposal site for excess materials.
 - c) Describe extent of trench operations and sequencing.
2. Removal of Water from Excavation
 - a) Describe the approach for unwatering and dewatering.
3. Trenchless Crossings
 - a) Describe the planned methods for completing the work.
4. Cathodic Protection
 - a) Describe the process for developing approval drawings and provide the assumptions used in pricing.
5. Pipe bedding and embedment
 - a) In pipe alignment areas where either CLSM or select fill material is allowed, provide the assumed pipe bedding and embedment material, the assumed source, and the associated reasoning for its selection.
 - b) Process and sequencing for testing and managing of potentially contaminated material within the Town of Boone, Colorado.
6. Leak testing pipelines
 - a) Describe process, sequencing for testing, and disposal of water
 - b) Provide estimated water volume use and sources assumed
7. Traffic Control Management
 - a) Describe concepts for managing traffic.
8. Maintaining Property Access
 - a) Describe how construction will be managed to follow specified restrictions.
 - b) Describe the process for notifications.
9. Fiber Optic Installation
 - a) Describe the process for coordination and execution of planning and installation of the fiber.
 - b) Describe the testing and documentation process for the fiber.

Submit a detailed construction schedule presented in bar chart (Gantt chart) format, and schedule narrative, including major milestones, including anticipated production rates and procurement times with long lead times. The proposed construction schedule shall be formatted to print legibly, in color (11"x17" size), and have columns that display the following information (in order):

1. activity identification
2. activity description
3. planned duration
4. start date
5. finish date
6. total float
7. calendar identification

The proposed construction schedule shall depict the project in adequate detail to demonstrate the Offeror's understanding of the

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

project. The construction schedule shall be in format compatible with Primavera Professional Project Management. Include electronic copies of the .PDF Gantt Chart, the .XER schedule data file, and the .PLDF schedule layout file. The construction schedule shall include at a minimum:

1. Principal components of work.
2. Key submittals required prior to mobilization and to begin principal components of work. Include submission and review time durations as well as lead times.
3. Procurement, delivery, and storage of critical construction materials.
4. Sequence and duration of construction activities to accomplish the work within the work restrictions identified in the specifications. Include appropriate level of detail for activity durations to demonstrate offeror understands the project construction sequencing.
5. Clearly identify the critical path.
6. For use in preparing the proposed construction schedule, and solely for the purpose of evaluating the technical proposals, offerors can anticipate a notice to proceed (NTP) date of approximately September 11, 2026. This estimated NTP date is subject to change.

The schedule must be supported with a narrative describing how the offeror plans to complete the entire project within the time allowed for performance, including major milestones. The narrative shall detail the anticipated crew sizes, number of crews, composition of each crew, hours per day and hours per week that work will be occurring. Offeror shall discuss how subcontractors will be integrated into this project. The narrative shall identify assumptions for typical weather impacts (reasonable and expected based on historical weather information for the area). Specifically address how cold weather is accounted for in the construction schedule.

Evaluation Factor 2: Past Performance

(a) Offeror shall provide past performance questionnaires (PPQs) on a minimum of three (3) and a maximum of five (5) projects similar in scope and magnitude to the work required under this solicitation which the offeror has completed during the past ten (10) years. The offeror shall submit the PPQs to their references and have the references complete and return the questionnaires via email to the offeror directly to submit with its proposal, or the references may submit directly to monica_burgio@ios.doi.gov and carbon copy david_bryan@ios.doi.gov by the date and time indicated on the form whichever is preferred by the offeror. The PPQ is included in Section J, Attachment No. 6: Past Performance Questionnaire. The government is not responsible for ensuring the receipt of PPQs from contractor references; it is the contractor's responsibility to follow-up with reference submissions.

(g) Volume III - Price Proposal

Evaluation Factor 3 – Cost / Price:

Offerors are hereby notified that even though cost or pricing data are not initially requested in this solicitation, the Contracting Officer reserves the right to request such data if they are later found necessary pursuant to FAR 15.403-5(a)(1).

To assist in the uniform evaluation of proposals, the following format shall be utilized in preparing the pricing proposal:

(1) A cover page that includes the following information:

- a. Solicitation Number and Project Name
- b. Time and Date for Receipt of Proposals

Solicitation**Document No.**

140R6026R0001

Document Title**Arkansas Valley Conduit (AVC) – Crowley Reach 1**

c. Firm Name, Address, and SAM UEI

d. Point of Contact Information (Name, Phone Number(s), E-mail)

(2) Table of contents. The Table of Contents shall list all sections of the pricing proposal. Any modifications or revisions to the proposal, up to the date of agreement on price, shall include an updated Table of Contents;

(3) Index. The index shall cross reference the work statement to the terms of the proposal and indicate how the proposal conforms to the evaluation factors contained in Section M of this solicitation;

(4) Enclosures. A list shall be included of all enclosures, attachments, tables, drawings, charts, and any other material which summarize data or information contained or referenced in the pricing proposal;

(5) The price proposal should be consistent with the technical approach(es) proposed in the technical proposal, Volume II;

(6) Pricing proposal breakdown. The offeror shall submit Section B of the contract Schedule (Schedule of Supplies and Services, found in Part I of this solicitation), including any attached Price Schedules noted in Section B, with its proposed total prices/costs for each contract line item number (CLIN), including any options, and proposed unit price(s), if required. Complete and submit Price Schedules A through D. Offerors are hereby notified that even though additional data to support proposed prices are not initially requested in this solicitation, the Contracting Officer reserves the right to request such data if they are later found necessary.

(7) No cost information shall be included in any of the other volumes;

(8) All price or cost amounts shall be expressed to the nearest whole dollar except for individual hourly labor rates (if required). All percentages shall be expressed to two decimal places.

(h) Directions for submitting electronic copy of proposal:**Preferred: Microsoft Teams Electronic Proposal Instructions**

Email monica_burgio@ios.doi.gov & cc david_bryan@ios.doi.gov **no later than one week before proposals are due** to let us know that you plan to submit the electronic copy of your proposal. It is the contractor's responsibility to confirm that this email is received by Reclamation.

The next steps in the process are:

(1) You will receive an email from monica_burgio@ios.doi.gov or david_bryan@ios.doi.gov with a link to a Microsoft Teams Invite. Click the link to the Teams invite and you should have access to the Teams folder made specifically for each offeror. Only the individual that emailed Reclamation will have access to the folders.

(2) Upload a Test document into team in Microsoft Teams and confirm with Monica Burgio (with a cc to David Bryan) that it was received.

(2) You can then upload your proposal documents to the folder, but this must be completed before solicitation closing date/time. Do not wait too close to the proposal due date/time to complete this process. It can take time for you to upload your large proposal documents.

(3) After you complete the above process, confirm receipt with Monica Burgio (with a cc to David Bryan).

(4) If you have technical problems completing this process, contact Monica Burgio.

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

Backup/Alternate: Kiteworks Electronic Proposal Instructions

Email monica_burgio@ios.doi.gov & cc david_bryan@ios.doi.gov **no later than one week before proposals are due** to let us know that you plan to submit the electronic copy of your proposal. It is the contractor's responsibility to confirm that this email is received by Reclamation.

The next steps in the process are:

- (1) You will receive an email from secure.usbr.gov. The subject of the message will show the email is from Monica Burgio or David Bryan. If you do not see this email, check your SPAM folder.
- (2) The text of the email informs you that the link to send Reclamation a file is good for a specific number of days.
- (3) When you click on ACTIVATE in the email, you will be taken to a screen to create a password. The password must be at least 12 characters long and contain at least one uppercase letter, one lowercase letter, one number, and one special character.
- (4) You will be taken to a screen where you can upload the files that make up your proposal.
- (5) After you complete the above process, confirm receipt with Monica Burgio (with a cc to David Bryan).
- (6) If you have technical problems completing this process, contact Monica Burgio.

(End of provision)

L.11 WBR 1452.236-85 INSTRUCTION FOR MOBILIZATION AND PREPARATORY WORK SCHEDULE LINE ITEM - BUREAU OF RECLAMATION (MARCH 2022)

The contracting officer estimates that the Section B Mobilization and Preparatory Work schedule line item should not exceed 5 percent of the total bid price. Your attention is directed to contract clause WBR 1452.232-81 Payment for Mobilization and Preparatory Work, which reflects how the Government will pay for this line item, including how payment will be made when the price bid for this schedule line item is higher than the percentage stated herein.

(End of Provision)

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	--

SECTION M -- Evaluation Factors for Award

M.1 WBR 1452.215-80 SOURCE SELECTION EVALUATION PROCEDURES -- BUREAU OF RECLAMATION (MARCH 2021)

The Government intends to evaluate proposals submitted under this solicitation and select a source for contract award without discussions (unless the contracting officer later determines discussions to be necessary) in accordance with the following provision: FAR 52.215-1 Instructions to Offerors -- Competitive Acquisition (Jan 2017). Source selection shall be in accordance with procedures contained in FAR Part 15, Department of the Interior Acquisition Regulation (DIAR) Part 1415 (48 CFR 1415) and Bureau of Reclamation Acquisition Regulation WBR Part 1415. These procedures are summarized as follows:

(a) Technical evaluation. A Technical Proposal Evaluation Committee has been established to objectively evaluate technical proposals in accordance with the Evaluation Factors for Award -- Bureau of Reclamation provision of this solicitation. Technical proposals shall be submitted in accordance with the Proposal Instructions -- Bureau of Reclamation provision of this solicitation.

(b) Past performance evaluation. In addition to any other past performance information required under the solicitation, the contracting officer shall use past performance information available from the Contractor Performance Assessment Reporting System (CPARS) in the source selection process on offerors competing for awards in excess of the simplified acquisition threshold, unless the contracting officer has documented an exception from past performance consideration in accordance with FAR 15.304(c)(2)(iv).

(c) Cost or price evaluation. An objective cost or price evaluation of contract pricing proposals will be made in accordance with the Evaluation Factors for Award provision of this solicitation. Pricing proposals shall be submitted in accordance with the Proposal Instructions -- Bureau of Reclamation provision of this solicitation. A cost or price analysis will be performed to determine price reasonableness and any instances of unbalanced pricing, using one or more of the techniques at FAR 15.404-1.

(End of provision)

M.2 WBR 1452.215-84 EVALUATION FACTORS FOR AWARD -- QUALITY AND COST/PRICE APPROXIMATELY EQUAL -- BUREAU OF RECLAMATION (MARCH 2021)

(a) Award will be made to the responsible offeror submitting a proposal which conforms to the solicitation and is most advantageous to the Government considering the factors and any significant subfactors listed in this provision.

(b) In the evaluation of proposals, all evaluation factors (listed in this provision) other than cost or price, when combined, are considered to be approximately equal to cost or price. The relative importance to be placed on the evaluation factors in relation to each other is contained in paragraph (e) of this provision. If a proposal is determined by the Contracting Officer to be "technically unacceptable" as a result of evaluating all factors other than cost or price, the proposal may be rejected from further consideration. The Contracting Officer reserves the right to make award to either a lower cost/price, lower-scored offeror or a higher-rated, higher-cost/price offeror based on a rational tradeoff between evaluation factors other than cost or price and cost or price.

Since technical proposals are being solicited to obtain information to be used in the evaluation, the Government reserves the right to use information outside of the proposal to evaluate the capability of offerors and the value of offers.

(c) Pursuant to FAR 15.305(a)(1), a cost or price analysis will be performed to determine price reasonableness and any instances of unbalanced pricing, using one or more of the techniques at FAR 15.404 -1.

(d) The following factors and significant subfactors (if listed) will be considered in evaluating proposals and making the source selection:

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	---

Evaluation Factor 1 – Technical Approach and Schedule:

Technical Approach - The offeror will be evaluated based on its demonstrated understanding of the project through the narrative work plans required under Evaluation Factor 1: Technical Approach and Schedule in Section L. The evaluation will consider the project team's understanding of the project requirements, the feasibility and technical soundness of the proposed methods, and the consistency between the narrative work plans and the proposed construction schedule. Proposals that provide clear, well-reasoned, task-specific approaches and demonstrate a strong understanding of project conditions will be evaluated more favorably.

Schedule – The offeror will be evaluated based on their project team's ability to effectively schedule the project to ensure on-time delivery. The evaluation will be based on the offeror's detailed construction schedule, calendars used, and information provided on total float, key submittals, and critical path. The higher level of detail in the provided schedule demonstrates the offeror's understanding of the construction sequencing for the project and will be evaluated more favorably. The schedule will be evaluated on how the offeror plans to complete the entire project within the time allowed for performance, including major milestones. The narrative will be evaluated on assumptions for typical weather impacts (reasonable and expected based on historical weather information for the area) and how cold weather is accounted for in the construction schedule.

Evaluation Factor 2 – Past Performance:

Past performance information will be gathered from offeror submissions, Past Performance Questionnaires, Government databases such as the Contractor Performance Assessment Reports System (CPARS) and/or using Government and commercial customer interviews and questionnaires. References other than those identified by the offeror may be contacted by the Government and used in the evaluation of the offeror's past performance. The Government reserves the right to obtain information for use in the evaluation of past performance from any and all sources, including those outside the Government. Only recent and relevant past performance information will be considered.

“Recent” is defined as performance and/or contracts awarded within the last ten years.

“Relevant” is defined as work that involves substantially the same types of work in terms of complexity, magnitude, and scope.

If the Government receives negative past performance information that the offeror has not previously had an opportunity to address, the offeror will be allowed to respond. The Government will consider the offeror's explanation and the effectiveness of any corrective actions. Past problems will not automatically result in an unfavorable rating if the offeror demonstrates successful corrective action and improved performance.

In accordance with FAR 15.305(a)(2)(iv), the lack of relevant past performance will result in a neutral rating (i.e., not rated favorably or unfavorably).

Evaluation Factor 3 – Cost / Price:

The pricing criteria used for evaluation are (1) Completeness, (2) Price Reasonableness, and (3) Total Evaluated Price (TEP).

1. Completeness: The Government will review the pricing submission for completeness and compliance with Section L of the RFP. Incomplete price submissions may NOT be evaluated, and the proposal may be eliminated from the competition.
2. Price Reasonableness: The Offeror's price proposal will be evaluated using one or more of the techniques defined in FAR 15.404-1 (Proposal Analysis Techniques). Price reasonableness is most easily defined as “what another reasonable businessperson would pay for the good or service under the same circumstances.”
3. Total Evaluated Price (TEP): Price Analysis will be performed to determine the reasonableness of the Offeror's pricing proposal. The TEP will be calculated as the sum of all proposed prices contained in the Schedule B pricing. The TEP is a fixed and contractually binding amount, all applicable prices must be completed. An omitted item may result in proposal elimination.

All proposed prices will be reviewed for price reasonableness and any instances of unbalanced pricing.

Solicitation	Document No. 140R6026R0001	Document Title Arkansas Valley Conduit (AVC) – Crowley Reach 1
---------------------	--------------------------------------	---

(e) The relative importance of the factors listed in paragraph (d) of this provision is as follows: Non-price Evaluation Factors 1 and 2 are approximately equal in importance to each other, and when combined, are approximately equal in importance to Evaluation Factor 3 (Cost/ Price) for purposes of the award decision.

(f) Award will be made to that offeror whose proposal is the most advantageous to the Government and demonstrates that (1) it meets the technical requirements of the solicitation and (2) the proposal's technical/cost relationship represents the best value to the Government. The critical factor in making any cost/technical tradeoff is not the spread between the technical ratings but, rather, the significance of that difference. The significance of the spread of ratings will be determined on the basis of what the difference might mean in terms of performance and what it would cost the Government to take advantage of it. Award may not necessarily be made for technical capabilities that would appear to exceed those needed for the successful performance of the work. The Government reserves the right to make cost/technical tradeoffs that are in the best interest and advantageous to the Government. The Government may reject any or all offers if such action is determined to be in the best interest of the Government.

(End of provision)